

Nikki Devi vs State Of U.P. And Another on 26 July, 2024

Author: Gautam Chowdhary

Bench: Gautam Chowdhary

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2024:AHC:124167

AFR

Court No. - 90

Case :- APPLICATION U/S 482 No. - 20438 of 2022

Applicant :- Nikki Devi

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Akhilesh Chandra Shukla, Amar Bahadur Maurya, Amber Khanna, Anubha

Counsel for Opposite Party :- Anurag Kamal, G.A., Hari Om Rai

Hon'ble Dr. Gautam Chowdhary, J.

1. Heard Sri Shailesh Mishra, learned counsel for the applicant, Sri Gyan Prakash learned Additional Solicitor General of India, assisted by Sri Sri Sanjay Yadav, learned counsel for the C.B.I. learned A.G.A. for the State and Sri Bhupendra Pandey, opposite party no.2-Advocate in person

2. By means of the present application under Section 482 Cr.P.C. the applicant-informant namely, Nikki Devi has sought direction upon the learned Special Court SC/ST Act, Prayagraj, District Prayagraj, to consider and decide the trial of Sessions Trial No. 560 of 2021 (State Vs. Bhupendra Pandey) arising out of Case Crime No. 150 of 2021 under Sections 376-D, 506 I.P.C. and Section 3 (2) (v) of SC/ST Act, Police Station Daraganj, District Prayagraj, as expeditiously as possible.

3. The instant case has remained pending since 2022. When the matter came up for consideration on 21.07.2022, it was intimated to the Court by Sri Bhupendra Pandey, the opposite party no.2 that

several gangs of non-practising Advocates, are being operated involving women, to trap the innocent persons in fake cases implicating them amongst others Sections of IPC, under SC/ST Act and after submission of charge sheet, they distribute the money received from the Government, amongst themselves.

4. Apart from the aforesaid submissions made by Sri Bhupendra Pandey, it was also intimated to the Court that certain persons, though they are Advocates on paper, but are non-practising Advocate have formed a gang and are closely associated with the ladies of SC/ST community. The modus operandi of the gang is -the ladies enter into agreement to sell after taking earnest money from the vendee. When the vendee asks them to execute the sale deed, they refuse and on insistence by the vendee, the alleged vendor use to implicate those vendees in false and frivolous case under penal provision of IPC along with SC/ST Act. When the vendee seeks protection in accordance with law before appropriate Court, these vendor take shelter of those of Advocates Gang, who used to initiate criminal proceedings at the behest of those vendor not only against the vendee but also against the Advocates of vendee who contests the case on their behalf. It was also brought to the notice of the Court that practising Advocates have also become victims of false accusation by the non-practising Advocates. Those non practising advocates are involved in some other profession such a real estate, construction etc. under the garb/ shelter of their advocacy.

5. It is well acknowledged that the powers under section 482 Cr.P.C has to be exercised by the Court to prevent abuse of the process of any court or otherwise to secure the ends of justice. Though the powers possessed by the High Court under Section 482 of Cr.P.C. are very wide but the very plenitude of the power requires great caution in its exercise. The inherent power cannot be exercised to stifle a legitimate prosecution. Such powers have to be exercised only to give effect to any order under Cr.P.C, to prevent abuse of the process of any court and to secure the ends of justice. Therefore, considering the seriousness of the allegations made and the gravity of offence, this Court vide order dated 21.07.2022 had stayed the further proceedings of Sessions Trial No. 560 of 2021 (State Vs. Bhupendra Pandey) arising out of Case Crime No. 150 of 2021 under Sections 376-D, 506 I.P.C. and Section 3 (2) (v) of SC/ST Act, Police Station Daraganj, District Prayagraj after inviting counter and rejoinder affidavits fixing the matter for 18.08.2022.

6. In line no.1 of paragraph no.9 the word "applicant" was inadvertently transcribed in place of "accused", thus the correction application filed for the said correction was allowed vide order dated 01.08.2022.

7. When the matter was taken up on 18.08.2022, counter affidavit was filed by the accused-opposite party no.2 bringing on record a list of as many as 50 cases registered against the innocent persons including the Advocates. Including the instant case i.e. Sessions Trial No. 560 of 2021 (State Vs. Bhupendra Pandey) arising out of Case Crime No. 150 of 2021 under Sections 376-D, 506 I.P.C. and Section 3 (2) (v) SC/ST Act, Police Station Daraganj, District Prayagraj, in this way total 51 cases have been registered at District Prayagraj, out of which 36 cases have been registered at Police Station Mau Aima and the remaining cases have been registered at different Police Stations. The list of criminal cases is annexed as Annexure-CA17 to the affidavit. This Court relying upon the Judgement of Hon'ble Apex Court in the matter of State of West Bengal and others Vs. The

Committee for Protection of Democratic Rights, West Bengal and others reported in 2010 (3) SCC 571 and also taking into account the interest of justice and to protect the interest of Advocates, who are being victimised on false accusation directed the C.B.I. to conduct preliminary enquiry with regard to 46 cases only as well as Sessions Trial No. 560 of 2021 (State Vs. Bhupendra Pandey) arising out of Case Crime No. 150 of 2021 under Sections 376-D, 506 I.P.C. and Section 3 (2) (v) SC/ST Act, Police Station Daraganj, District Prayagraj. The detail of which are given below:-

1. Case Crime No. 181 of 2002 under Sections 323, 504 I.P.C. Police Station Mau-aima, District Allahabad.
2. Case Crime No.406 of 2002 under Sections 323, 504, 506, 452 I.P.C. Police Station Mau-aima, District Allahabad.
3. Case Crime No. 128 of 2005 under Sections 323, 504, 506, 452, 394, 307 I.P.C. Police Station Mau-aima, District Allahabad.
4. Case Crime No. 233 of 2007 under Sections 198Ka, 323, 504, 506, 452, 307, 394, 147, 148 I.P.C. Police Station Mau-aima, District Allahabad.
5. Case Crime No. 112 of 2010 under Sections 307, 323, 504, 506, 324 I.P.C. Police Station Mau-aima, District Allahabad.
6. Case Crime No.416 of 2011 under Sections 147, 392, 452, 323, 504, 506, 427 I.P.C. Police Station Mau-aima, District Allahabad.
7. Case Crime No. 302 of 2007 under Sections 367, 504, 506 I.P.C. Police Station Mau-aima, District Allahabad.
8. Case Crime No. 87 of 2012 under Sections 323, 324, 504, 506, 308 I.P.C. Police Station Mau-aima, District Allahabad.
9. Case Crime No. 30 of 2013 under Sections 507, 115, 120-B I.P.C. Police Station Mau-aima, District Allahabad.
10. Case Crime No. 299 of 2016 under Section 174, 504, 507 I.P.C. Police Station Shiv Kuti District Allahabad.
11. Case Crime No. 154 of 2016 under Sections 147, 323, 447, 452, 504, 505, 427 I.P.C. Police Station Baharia, District Allahabad.
12. Case Crime No. 47 of 2016 under Sections 323, 504, 427 I.P.C. Police Station Kydganj, District Allahabad.

13. Case Crime No.361 of 2016 under Sections 147, 323, 504, 506, 379 I.P.C. and Section 3 (2) V SC./ST Act Police Station Shivkuti, District Allahabad.
14. Case Crime No. 38 of 2017 under Section 506 I.P.C. Police Station Colonelganj, District Allahabad.
15. Case Crime No. 277 of 2017 under Sections 323, 504, 506 I.P.C. Police Station Shivkuti, District Allahabad.
16. Case Crime No. 92 of 2017 under Sections 147, 379, 447, 323, 504, 506, 427 I.P.C. and Section 3 (2) V SC/ST Act, Police Station Baharia, District Allahabad.
17. Case Crime No. 82 of 2008 under Sections 147, 148, 149, 302/34, 120-B I.P.C. Police Station Baharia, District Allahabad.
18. Case Crime No. 557 of 2017 under Sections 147, 323, 504, 506, 427, 394 I.P.C. Police Station Cantt. District Allahabad.
19. Case Crime No. 218 of 2012 Police Station Shivkuti, District Allahabad.
20. Case Crime No. 680 of 2021 under Sections 376 (D), 452, 506, I.P.C. and Section 3/4 of POCSO Act, and Section 3 (2) (V) SC/ST Act, Police Station Mau-aima, District Allahabad.
21. Case Crime No. 370 of 2019 under Sections 147, 323, 504, 352, 506 I.P.C. Police Station Mau-aima, District Allahabad.
22. Case Crime No. 097 of 2022 under Sections 147, 323, 504, 506, 452, 427 I.P.C. Police Station Mau-aima, District Allahabad.
23. Case Crime No. 142 of 2012, S.T. No. 389 of 2014 under Sections 323, 324, 504, 506 I.P.C. Police Station Mau-aima, District Allahabad.
24. Case Crime No. 106 of 2002 under Sections 323, 504, 508, 452 I.P.C. Police Station Mau-aima, District Allahabad.
25. Case Crime No. 125 of 2005 Police Station Mau-aima, District Allahabad.
26. Case Crime No. 179 of 2016 under Sections 302, 201 I.P.C. Police Station Mau-aima, District Allahabad.
27. Case Crime No. 270 of 2019 under Sections 323, 394, 504, 506 I.P.C. Police Station Mau-aima, District Allahabad.

28. Case Crime No. 29 of 2016 under Sections 147, 506, 507 I.P.C. Police Station Shivkuti, District Allahabad.
29. Case Crime No. 381 of 2017 under Section 506 I.P.C. Police Station Colonelganj, District Allahabad.
30. Case Crime No. 391 of 2017 under Sections 147, 323, 504, 506, 379 I.P.C. and Section 3 (2) V Ka SC/ST Act, Police Station Shivkuti, District Allahabad.
31. Case Crime No. 30 of 2013 under Sections 504, 115, 120-B I.P.C. Police Station Shivkuti, District Allahabad.
32. Case Crime No. 181 of 2002 under Sections 323, 504 I.P.C. Police Station Mau-aima, District Allahabad.
33. Case Crime No. 406 of 2002 under Sections 323, 504, 506, 452 I.P.C. Police Station Mau-aima, District Allahabad.
34. Case Crime No. 233 of 2007 under Sections 198Ka, 323, 504, 506, 452, 307, 394, 147, 148 I.P.C. Police Station Mau-aima, District Allahabad.
35. Case Crime No. 112 of 2010 under Sections 307, 323, 504, 506, 324 I.P.C. Police Station Mau-aima District Allahabad.
36. Case Crime No. 416 of 2011 under Sections 147, 392, 452, 323, 504, 506, 427, I.P.C. Police Station Mau-aima, District Allahabad.
37. Case Crime No. 302 of 2007 under Sections 379, 504, 506 I.P.C. Police Station Mau-aima, District Allahabad.
38. Case Crime No. 142 of 2012 under Sections 323, 324, 504, 506, 308 I.P.C. Police Station Mau-aima, District Allahabad.
39. Case Crime No. 090 of 2021 under Sections 342, 376-D, 506 I.P.C. Police Station Mau-aima, District Allahabad.
40. Case Crime No. 317 of 2018 under Sections 392, 354Kha I.P.C. Police Station Mau-aima, District Allahabad.
41. Case Crime No. 72 of 2018 under Sections 436, 452, 147Kha, 148 I.P.C. Police Station Mau-aima, District Allahabad.
42. Case Crime No. 218 of 2018 under Sections 323, 308 I.P.C. Police Station Mau-aima, District Allahabad.

43. Case Crime No. 240 of 2017 under Sections 323, 504 I.P.C. and Section 3/2/5 SC/ST Act, Police Station Mau-aima, District Allahabad.

44. Case Crime No. 617 of 2018 under Sections 376, 313, 504, 506 I.P.C. Police Station Mau-aima, District Allahabad.

45. Case Crime No. 144 of 2022 under Sections 376D, 328, 506 I.P.C. Police Station Phaphamau, District Allahabad.

46. Case Crime No. 420 of 2021 under Sections 307, 342, 506 I.P.C. Police Station Mau-aima, District Allahabad.

8. The informant-applicant Nikki Devi challenged the order dated 21.07.2022 and 18.08.2022 before Hon'ble Apex Court by way of filing Special Leave to Appeal (Crl) No(s) 8313-8314 of 2022 and the Hon'ble Apex Court had been pleased to dismiss the said special leave petition, vide order dated 12.09.2022.

9. After filing of counter affidavit by Sri Bhupendra Pandey, Advocate-the accused-opposite party no.2, who had specifically stated in his counter affidavit that as many 50 cases have been registered against the innocent persons at the behest of the non-practising Advocates and considering the gravity of cases, this Court had ordered for preliminary enquiry into the matter with respect to 46 cases vide order dated 18.08.2022 fixing the matter for 20.10.2022.

10. On 20.10.2022, Sri Vinod Shanker Tripathi, Advocate, had filed a modification/clarification application no.03 of 2022 along with impleadment application supported by an affidavit. He had filed a detailed affidavit, wherein it has been stated that malicious allegations have been imputed upon him by the opposite party no.2 to the extent of implicating him in a false and frivolous complaint through Smt. Nikki Devi and further levelling allegation against him that he is an active member of alleged gang of Advocates, who use to trap people in false/fake cases, in order to extract money. It has also been stated in the affidavit that the opposite party no.2 in the present case, has not come up with clean hands and intent before this Court since the opposite party no.2 himself encroached upon the land of innocent owners and is habitual of lodging false and frivolous F.I.Rs. He has also stated that the opposite party no.2 also got a false F.I.R. lodged through his sister against innocent persons for unlawful consideration in Case Crime No. 549 of 2015 under Sections 354, 504 I.P.C. Police Station Colonelganj, District Allahabad, in which compromise was entered into, after taking monetary compensation. Apart from the aforesaid averments several other averments have been made in the affidavit accompanying the modification application and had prayed that the order dated 18.08.2022 may be modified to the extent that apart from preliminary enquiry directed to be conducted by the C.B.I. with regard to the cases shown at serial no. 1 to 46, the C.B.I. may also be directed to conduct preliminary enquiry with regard to the cases detailed in Annexure-23 of the affidavit accompanying the application.

11. Taking into consideration the averments made by Sri Vinod Shanker Tripathi in the impleadment application as well as in the modification application, this Court vide order dated

20.10.2022 had allowed the impleadment application for impleading Sri Vinod Shanker Tripathi as opposite party no.3. Apart from allowing the aforesaid impleadment application, this Court had also allowed the modification application filed by Sri Vinod Shanker Tripathi and this Court had directed the C.B.I. to conduct the preliminary enquiry with respect to 23 cases out of 26 cases sought to be preliminary enquired by the C.B.I. The details of 23 cases are as under:-

- (1) Case Crime No. 0562 of 2012 under Sections 457, 380, 419, 420, 467, 468, 471 I.P.C. Police Station Colonelganj, District Prayagraj.
- (2) Case Crime No. 105 of 2021 under Sections 376 (D), 506 I.P.C. Section 3(2) SC/ST Act, Police Daraganj, District Prayagraj.
- (3) Case Crime No. 82 of 2010 under Sections 308, 406 I.P.C. Police Station Civil Lines, District Prayagraj.
- (4) Case Crime No. 144 of 2022 under Sections 376 (D), 328 I.P.C. Police Station Phaphamau, District Prayagraj.
- (5) Case Crime No. 798 of 2021 under Sections 504, 506 I.P.C. Police Station Civil Lines, District Prayagraj.
- (6) Case Crime No. 312 of 2022 under Sections 323, 506, 406 I.P.C. Police Station Civil Lines, District Prayagraj.
- (7) Case Crime No. 549 of 2015 under Sections 354, 504 I.P.C. Police Station Colonelganj, District Prayagraj.
- (8) Case Crime No. 243 of 2018 under Sections 419, 420, 147, 323, 504, 506 I.P.C. and Section 3 (2) (V) and 3 (2) (VI) SC/ST Act, Police Station Civil Lines, District Prayagraj.
- (9) Case Crime No. 558 of 2021 under Sections 147, 447, 323, 504 I.P.C. and Section 3 (2) (V) SC/ST Act, Police Station Civil Lines, District Prayagraj.
- (10) Case Crime No. 379 of 2022 under Sections 147, 452, 427, 392, 504, 506 I.P.C. Police Station Civil Lines, District Prayagraj.
- (11) Case Crime No. 289 of 2022 under Sections 386, 506 I.P.C. Police Station Civil Lines, District Prayagraj.
- (12) Case Crime No. 114 of 2022 under Sections 147, 148, 149, 323, 504, 506, 307 I.P.C. Police Station Phaphamau, District Prayagraj.

(13) Case Crime No. 424 of 2022 under Section 420 I.P.C. Police Station Civil Lines, District Prayagraj.

(14) Case Crime No. 447 of 2022 under Sections 147, 148, 149, 323, 504, 506, 395, 34 I.P.C. Police Station Colonelganj, District Prayagraj.

(15) Case Crime No. 361 of 2021 under Sections 279, 304A I.P.C. Police Station Cantt. District Prayagraj.

(16) Case Crime No. 239 of 2012 under Sections 376D, 354, 504, 506 I.P.C. Police Station Mau Aima, District Prayagraj.

(17) Case Crime No. 181 of 2018 under Sections 323, 354B I.P.C. Police Station Mau Aima, District Prayagraj.

(18) Case Crime No. 105 of 2022 under Sections 376-D, 328, 506 I.P.C. 5/6 of POCSO Act, Police Station Mau-Aima, District Prayagraj.

(19) Complaint Case No. 908 of 2022 under Section 138 Negotiable Instruments Act, Police Station Civil Lines, District Prayagraj.

(20) Complaint Case No. 885 of 2022 under Section 138 Negotiable Instruments Act, Police Station Civil Lines, District Prayagraj.

(21) Complaint Case No. 125 of 2022 under Section 354, 452 I.P.C. and Section 3 (2) (V) SC/ST Act, Police Station Cantt., District Prayagraj.

(22) Complaint Case No. 06 of 2020 under Sections 323, 504, 506, 376-D I.P.C., Police Station Mau Aima, District Prayagraj.

(23) Complaint Case No. 17145 of 2022 under Sections 420, 467, 468 I.P.C. Police Station Mau Aima, District Prayagraj.

12. Number of intervener applications, modification application along with impleadment applications etc. were filed before this Court, wherein it has been alleged that the Advocates are being falsely implicated in false and frivolous cases, being the intervener application dated 20.10.2022, impleadment application no.15 of 2022, intervener application no. 24 of 2023, intervention application no.9 of 2022, application no. 13 of 2022 and Criminal Misc. Application No. 03 of 2024 filed in the connected Criminal Appeal No. 8520 of 2022.

13. On the intervener application dated 20.10.2022, this Court vide order dated 20.10.2022 has directed the C.B.I. to conduct the preliminary enquiry in Case Crime No. 599 of 2016 under Sections 147, 148, 149, 376, 354, 395, 397, 452, 427, 504, 506 I.P.C. Police Station Sarai Inayat, District Prayagraj.

14. On the Impleadment application no. 15 of 2022, the preliminary enquiry was directed to be conducted by C.B.I. vide order dated 13.02.2024 with respect to Case Crime No. 0224 of 2021 under Sections 147, 323, 504, 506, 452, 354B I.P.C. Police Station Sarai Inayat, District Prayagraj as well as Case Crime No. 255 of 2022 under Sections 307, 504, 506, I.P.C. Police Station Sarai Inayat, District Prayagraj.

15. Similarly on intervenor application no. 24 of 2023, this Court had also directed to conduct preliminary enquiry by the C.B.I. in Case Crime No. 90 of 2022 under Sections 494, 504, 506 I.P.C. Police Station Industrial Area, District Prayagraj, vide order dated 13.02.2023.

16. This Court while allowing the intervention application no. 09 of 2022, had directed the C.B.I. to conduct preliminary enquiry by the CBI with respect to Case Crime No. 91 of 2020 under Sections 354Kh, 147, 148, 323, 308, 427, 452, 504, 506 I.P.C. Police Station Hanumanganj, District Kushinagar, Criminal Complaint Case No. 429 of 2019 (old no. 180 of 2019) Police Station Kotwali Hata, District Kushi Nagar, Criminal Complaint Case No. 13615 of 2020 (Old Case No. 801 of 2020) under Sections 323, 504, 506, 427 I.P.C. Police Station Hanumanganj, District Kushinagar.

17. On the application no.13 of 2022, direction was issued by this Court vide order dated 13.02.2023 that a preliminary enquiry be conducted by the CBI with respect to Case Crime No. 195 of 2020 under Sections 376D, 406, 342, 506 I.P.C. Police Station Kareilly, District Prayagraj, Case Crime No. 141 of 2020 under Sections 468, 467, 420, 419, 406 I.P.C. Police Station Kydganj, District Prayagraj.

18. Another application being Criminal Misc. Application No. 03 of 2024 filed in connected Criminal Appeal No. 03 of 2024 was also allowed by this Court vide order dated 30.01.2024 in which, this Court had directed the C.B.I. to conduct preliminary enquiry in Case Crime No. 335 of 2021 under Sections 323, 504, 506, 354Kha I.P.C. and Section 3 (2) Va of SC/.ST (Prevention of Atrocities) Act, Police Station Kotwali, District Prayagraj/Allahabad.

19. It goes without saying that the applications which were allowed by this Court for conducting preliminary enquiry by the C.B.I. in respect to the cases as detailed in paragraph nos. 13 to 18, the accused persons are of practising Advocates.

20. Apart from allowing the aforesaid applications, numbers of applications were rejected by this Court vide order dated 31.10.2023.

21. Thus this Court, on different dates directed the C.B.I. to conduct preliminary enquiry in as many as 78 cases, details of which have already been given in the preceding paragraph nos.7, 11, 12, 13, 14, 15, 16, 17 and 18.

22. Pursuant to the order dated 18.08.2022, the Preliminary Enquiry report submitted by the C.B.I. being No. PE 0532022S0001 shows that the cases which were directed to be enquired preliminary by the C.B.I. were 46, however the cases shown at serial nos. 1, 2, 4, 5, 6, 7, 23, and 28 have been repeated at serial no. 32, 33, 34, 35, 36, 37, 38, 29 respectively and the F.I.R. said to have been registered at serial no. 30 of that report being Case Crime No. 391 of 2017 under Sections 147, 323,

504, 506, 379 I.P.C. and Section 3 (2) V Ka SC/ST Act, Police Station Shivkuti, District Allahabad is not existing. Thus out of 46 cases, only 38 cases were preliminary enquired by the C.B.I. which are under:-

23. The preliminary enquiry No. PE 0532022S0001 with respect to 38 cases is in the following terms:

(I) Case Crime No. 150 of 2021 under Sections 376-D, 506 I.P.C. and Section 3 (2)(v) of SC/ST Act, Police Station Daraganj, District Prayagraj, which is instant case in the present 482 Cr.P.C. in which, the applicant-informant Nikki Devi lodged against the opposite party no.2 Bhupendra Kumar Pandey, has sought prayer to expedite the proceedings.

Findings of the State Police:- The first Investigating Officer namely, Sri Jai Prakash Shahi collected CDR of the accused during the investigation, the C.C.T.V. footage to ascertain the movement of the vehicle and recorded the statement of independent witnesses at scene of crime and found the alleged rape allegation suspicious. Since the prosecutrix belongs to Scheduled Caste, the concerned Sections of S/ST Act were added in the case. Therefore, case was transferred to concerned Circle Officer (City-V), Prayagraj for investigation. During subsequent investigation, accused Bhupendra Kumar Pandey, Advocate was arrested.

The Investigation was lastly carried out by Ms. Astha Jaiswal, who obtained legal opinion from Sri Gulab Chandra Saroj Prosecuting Officer, Prayagraj, for filing charge sheet on the basis of material available on record. He opined positively and suggested that IO may collect more evidence before filing the report under Section 173 Cr.P.C. No further investigation was carried out in this matter and charge sheet was filed against Bhupendra Kumar Pandey under Section 376D and 506 I.P.C. only on the basis of statement of the victim recorded under Section 164 Cr.P.C. The case is at the stage of trial.

Enquiry by the CBI:- The first informant-victim had provided her mobile number 6391568409 in the F.I.R. which was issued by the service provider on 15.06.2021 at about 11:44 A.M. CDRs of the mobile number shows that there was no activity on this mobile number from 12:59 hours on 15.06.2021 to 17.06.2021. She got issued one more new mobile SIM on 15.06.2021 (the date of incident of alleged rape) in her name i.e. 7607946506 (Ritel) apart from 6391568406 (Vodafone). ON this day at 18:57:58, the location of mobile no. 7607946506 was found to be at Village Chak Payagi, Pargana Sikandara, Tehsil Phoolpur, District Prayagraj, which is about 32 kilometers away from the place of abduction i.e. C.M.P. Degree College, Prayagraj. Hence her allegation that she met with accused Bhupendra Kumar Pandey near C.M.P. Degree College at 07:00 P.M. does not appear to be correct. Sri Sonu husband of younger sister of the prosecutrix and his wife were using mobile no. 7754832321 & 9369071845 respectively and on that day i.e. on 15.06.2021, they had talked with the victim on her mobile no.7607946506. This further confirms that on 15.06.2021 the victim was using the mobile no 7607946506.

The CDR also reflects that during the alleged time of rape i.e. from 07:00 P.M. to 08:30 P.M. on 15.06.2021, this mobile number had received three calls at 20:06:54, 20:07:48 and 20:22:30 and at the time of receiving these calls, her location was at Village Dharauta, Tehil Mau Aima, District Allahabad and Lalganj, District Patapgarh which locations are more than 43 kilometers away from Jhoonsi area, the alleged place of rape.

The scrutiny of CDRs of mobile numbers 7318336999, 9792866999 of alleged accused Bhupendra Kumar Pandey revealed that on 15.06.2021 from 16:37:31 to 18:42:47, his location was at Stanley Road, Civil Line, Prayagraj whereas at around 18:58:40, he was at Elgin Road, Prayagraj. At this time he had conversation on mobile no. 9889100101 which lasted for about 12 minutes. From 19:11:03 till 20:56:08 his location was at Kydganj, Bai Ka Bagh, Prayagraj. CDRs do not reflect his movement to the place of scene of crime.

Immediately after activation of mobile number 7607946506 by the victim-prosecutrix, the first call was made from this mobile was at around 12:28 PM on mobile number 8787272838 which was in the name of Sh. Vinay Shankar Tripathi, being used by Sh. Vinod Shankar Tripathi. On 15.06.2021, there were 03 more calls made from this mobile number to the mobile number 8787272838 of Sh. Vinod Shankar Tripathi. Sh. Sandeep Kumar Srivastava, Advocate, who appeared for Prosecutrix in Crl. Appeal No. 5350/21 has stated that Vakalatnama for this purpose was brought to him by Sh. Vinod Shankar Tripathi He denied having seen Prosecutrix in person.

The versions regarding the place of incident are varying in victim's statements recorded u/s 161 Cr.PC, 164 Cr.PC and during inspection of the crime scene. Residents around the place of incident have denied the occurrence of any incident of rape at that place.

From the CCTV footage of the cameras located along the route narrated by Prosecutrix/victim in her statement, movement of accused's vehicle was not seen during the relevant time. During her medical examination, prosecutrix had named Shri Govind Pandey in place of Bhupendra Kumar Pandey as an accused who had raped her.

The above facts do not inspire faith in the allegations of rape levelled by prosecutrix against Bhupendra Kumar Pandey & another. Further, the conduct of Sri. Vinod Shankar Tripathi, Advocate being in constant touch with the prosecutrix/ complainant during the relevant period also points finger towards his involvement in this case.

The registration of the aforesaid false case was followed by a counter rape case wherein Shri Vinod Shankar Tripathi and his father were arrayed as an accused on 15.05.2022 in FIR No. 105/2022 of Police Station: Daraganj lodged by Smt. Samla Giri alleging gang rape of her daughter on 08.05.2022 at about 07:30 PM. Investigation by the State Police established that no such incident had taken place. In fact, the victim, daughter of Smt. Samla Giri in her statement u/s 164 Cr.PC had stated that no such incident had taken place and the FIR was got registered on the directions of her mother. The CDR locations of mobile numbers of accused Vinod Shankar Tripathi, Brijesh, Rajesh Shukla, Sudhakar Mishra and Vijay Tripathi were collected by the State Police during investigation which reflected that at the time of incident, the accused persons were not present at the scene of

crime. Shri Vinod Shankar Tripathi has alleged that Smt. Samla Giri is an associate of Shri Bhupender Kumar Pandey, Advocate and this FIR was lodged by her at his behest only.

Around this time Smt. Kusum Lata had stated to be an associate as well as client of Shri Bhupendra Kumar Pandey, Advocate filed another complaint no. 125/2022 dated 22.04.2022 under SC /ST Act before C.J.M. Allahabad against Vinod Shankar Tripathi, his father and brothers alleging that on 20.06.2021 at around 11:30 PM they forcibly entered her house at 14/A, Rajapur, PS Cantt. Prayagraj. Shri Vinod Shankar Tripathi has stated that as per the existing norms, the Govt. of UP gave a compensation of Rs. 6 lacs to her. In this case against Shri Vinod Shankar Tripathi and his family, Shri Jagat Narayan Tiwari is one of the witnesses in favour of Smt. Kusum Lata. Shri Vinod Shankar Tripathi has further stated that Smt. Kusum Lata had earlier taken similar compensation in FIR No. 243 of 2018, PS Civil Lines, Prayagraj in which Sri Jagat Narayan Tiwari who is star witness in this case, was made an accused as per the complaint of Smt. Kusum Lata Around this time, another FIR No. 114/2022 U/s 147, 148, 149, 323, 504, 506, 307 IPC PS Phaphamau was registered on 21.04.2022 against Vinod Shankar Tripathi and his father on the complaint of Bhupendra Kumar Pandey alleging that on 16.06.2021 while coming from Shantipuram towards Ghor Road, his motorcycle was knocked down by Sri Vinod Shankar Tripathi by his car and that Sri Vinod Shankar Tripathi and his father allegedly fired bullets on him.

While the aforesaid cases were registered against Shri Vinod Shankar Tripathi, gang rape case was registered on 24.05.2022 against Shri Bhupendra Kumar Pandey, Advocate & his associates with the following details:-

(II) Case Crime No. 144 of 2022 under Sections 376-D, 328, 504, 506 I.P.C. Police Station Phaphamau, District Prayagraj (placed at serial no.45 in the preceding paragraph no.7) Findings of State Police: The victim-X in her statement under Section 161 Cr.P.C. reiterated the facts narrated in the complaint. Accused-Wasim was arrested in this the matter. However, in her statement recorded under Section 164 Cr.P.C. she did not mention the name of Wasim. She replaced the name/role of Wasim with Bhupendra Kumar Pandey, Advocate. Accordingly, a report under Section 169 Cr.P.C. was filed and Wasim was released from jail. The case is still under investigation.

Enquiry of CBI:- Analysis of CDRs established that mobile number 6393579462 of Ms. Mansi Srivastava complainant/victim was in regular contact with mobile no. 9335909607 of Shams Vikas and mobile no. 8787272838 used by Vinod Shanker Tripathi from 17.05.2022 to 26.05.2022. The location of this mobile number on 22.05.2022 was at Jhakarrkati Bus Station, Kanpur at 11:53:54 hours and at Prayagraj Civil Line Bus Terminal at around 17:22:31 hrs. Thereafter, the mobiles location was used to be near Teliharganj from 17:50 to 19:16 Hours. She stayed near Lok Sewa Ayog Chauraha, Allahabad from 22.05.2022 to 24.05.2022 (9:26 Hrs).

Analysis of CDRs of mobile numbers 9792866999, 7318336999 of Advocate Bhupendra Kumar Pandey, revealed that on 22.05.2022, his location was near Civil Lines area, Allahabad only. He had not visited Phaphamau on 22/23.05.2022 i.e. the date of incident.

Scrutiny of CDRs of mobile number 8787272838 of Vinod Shanker Tripathi revealed that on 22.05.2022, he was in contact with the victim Shams Vikas Advocate (9335909607) and Sudhakar Mishra Advocate (6394965879).

Scrutiny of CDRs therefore indicate that at the alleged time of rape incident , the complainant-victim was present in Civil Lines area, Prayagraj and not a Phaphamau area which is about 9 kilometers away.

Advocate Shams Vikas who is close associate of Vinod Shanker Tripathi, Advocate has confirmed that Vinod Shanker Tripathi is anguished by two false cases against him by Bhupendra Kumar Pandey and Samlagiri used the victim of Kanpur to implicate Bhupendra Kumar Pandey, his brother Arun associate Wasim and Shubham Giri son of Samalgiri in her rape case. During this period i.e. 17.05.2022 to 26.05.2022, Vinod Shanker Tripathi was also using mobile number 9335909607 of Shams Vikas to communicate the victim-X on her mobile 6393579462.

Vinod Shanker Tripathi, Advocate came in contact with complainant/victim as he had filed Public Interest Litigation before this Court in the matter of death of Sri Jitendra @ Kallu, the brother of the complainant/victim, Gaurav Tiwari, Junior of Shri Vinod Shanker Tripathi, confirmed the presence of Ms. Poonam Srivastava (sister of complainant/victim) with Vinod Shanker Tripathi at the residence of Sri Dineshwar Mani Tripathi (relative of Sri Vinod Shanker Tripathi) inside the Lok Sewa Ayog, premises during the relevant conspiracy period.

Facts aforesaid indicate that complainant/victim in conspiracy with Vinod Shanker Tripathi lodged a false F.I.R. No. 144 of 2022 pertaining to her rape against Bhupendra Kumar Pandey, Wasim, Arun Pandey and Shubham Giri to settle the scores particularly after the registration of false cases against Vinod Shanker Tripathi at the behest of BhupendraKumar Pandey and Samlagiri and to extort money from them.

Immediately after registration of above referred false gang rape case, the next day i.e. on 25.05.2022 Smt.Saira Bano wife of accused Wasim resident of Dheenpur, Mauaima Prayagraj filed an application with S.S.P. Prayagraj alleging her rape by Sri Vinod Shanker Tripathi, his father and others on 24.05.2022 near Shantipuram Phaphamau, Prayagraj. Enquiry has revealed that husband of the complainant is work as Clerk (Munshi) with Advocate Bhupendra Kumar Pandey.

Another F.I.R. No. 424 of 2022 dated 04.08.2022 under Section 420 IPC. Police Station Civil Lines, District Prayagraj was registered on the complaint of Shri Bhupendra Kumar Pandey against Vinod Shanker Tripathi and his father alleging manipulation of the High Court Order. He got another FIR No. 447 of 202 dated 31.08.2022 under Sections 147, 149, 148, 323, 504, 506, 395 I.P.C. Police Station Colonelganj, District Prayagraj against Sri Vinod Shanker Tripathi, and four others alleging beating/abuse (maarpeet) in District Court premises.

Findings of CBI:- The above mentioned facts established that the rivalry between Sri Bhupendra Kumar Pandey and Sri Vinod shanker Tripathi, Advocates had led to registration of number of criminal cases against both of them and their associates. Enquiry has revealed that out of 8 cases at

least 03 cases i.e. F.I.R. Nos. 150 of 2021, Police Station Daraganj District Prayagraj, F.I.R. No. 144 of 2022 Police Station Phaphamau, District Prayagraj against Sri Bhupendra Kumar Pandey, Advocate and F.I.R. No. 105 of 2022 Police Station Daraganj, District Prayagraj lodged against Vinod Shanker Tripathi, Advocate do not appear to be based on true facts.

(III) Case Crime No. 617/2018 U/s 376, 506, 313, 380 IPC of Police Station- Mauaima Prayagraj. (placed at serial no.44 in the preceding paragraph no.7) The Enquiry has revealed that Sri. Ashish Kumar Mishra whose petition no. 17706 of 2019 was clubbed with the petition of Smt. Nikki Devi, is practicing as an Advocate in the Allahabad High Court. He has alleged that he has been falsely implicated in this matter.

The aforesaid F.I.R was registered against Akash Kumar and his brother Dharmendra by the victim on the allegation that Akash Kumar had raped and both had looted her. Sri Sudhakar Mishra, Advocate was the lawyer of the victim in that matter Shri Prabhat Kumar Mishra, Advocate is a close associate of Shri Sudhakar Mishra, Advocate.

Sri Ashish Mishra was appearing before the High Court on behalf of Dharayandra Mishra and others. He stated that on 04.10.2018, he was threatened by Advocate Sunil Kumar and Advocate, Ajay Kumar Mishra on behalf of Prabhat Kumar Mishra that he should not appear before the High Court in the said matter otherwise he would face the consequences. Sri Krishna Kumar Shukla, Senior of Shri Ashish Mishra was also threatened to refrain from appearing in related matters filed by Sh Ramesh Kumar Ojha, Advocate (maternal uncle of Ajay Kumar Mishra) to which he acceded. However, Ashish Mishra continued to appear before the High Court on behalf of Dharayandra Mishra and others and the fact of threatening was submitted before the High Court. The same was mentioned in the order dated 12.10.2018 of the Hon'ble High Court in Transfer Application (Crl.) No. 423 of 2018.

Subsequently, on the basis of statement u/s 164 Cr.P.C., 1973 of rape victim in Case Crime No. 617/2018, PS Mauaima, Prayagraj, name of Ashish Kumar Mishra was added as an accused in the said case. Prosecutrix in her statement u/s 161 Cr.PC had stated that she was raped by Akash Kumar and was looted by Akash and Dharmendra. However, in her subsequent statement u/s 164 Cr.PC, she named Ashish Mishra and Mustqeem as additional offenders. On completion of investigation, a chargesheet was submitted on 23.02.2019 against Akash Kumar, Dharmendra Kumar and Ashish Kumar. Mustqeem was not charge-sheeted as he was living in Mumbai during the relevant period.

Scrutiny of statements of victim recorded under Sections 161 Cr.P.C. as well as statement during medical examination and the statements 164 Cr.P.C. shows glaring contradictions. Names of Ashish Mishra and Mustqeem surfaced for the first time in the statement of the victim recorded u/s 164 Cr.P.C wherein she stated that both raped her after Akash. Ashish Mishra has stated that he had not visited the place of crime on the day of incident and the same has been corroborated by the tower location of his mobile numbers which shows that at the time of incident, his location was at Prayagraj and not at the scene of crime i.e. village Baka Jalalpur, which is 40 km, away from the scene of crime.

The victim had divorced her first husband Vinod and married Akash, the main accused in this case. The victim on 05.07.2022.

Finding of CBI:- Thus, it appears that Ashish Mishra Advocate was falsely implicated in the rape case of victim . The conduct of Sudhakar Mishra, Advocate, Ramesh Kumar Ojha, Advocate, Sunil Kumar, Advocate and Ajay Kumar Mishra, Advocate in this case appears to be suspicious.

Enquiry has revealed that Shri Sudhakar Mishra is an Advocate, who practising in Allahabad. It has been revealed that Advocates namely Ajay Kumar Mishra, Prabhat Kumar Mishra, Dheeraj Kumar Pandey Anurag Mishra, Satish Kumar Shukla, Ashutosh Shukla, Ramesh Kumar Ojha (maternal uncle of Ajay Kumar Mishra), Varun Shukla, Vishvambhar Nath and Aditya Kumar Mishra are associates of Sri Sudhakar Mishra, Advocate. He is native of village Chhata PS Mauaima Prayagraj and Diwakar Prasad Mishra, elder brother of Sudhakar Mishra is active in local Panchayat.

Enquiry has revealed that the group led by Diwakar Prasad Mishra, brother of Sudhakar Mishra is opposed to another group led by Sh. Devanand Yadav in the local Panchyat politics of Village-Chhata. Due to this political rivalry between these two groups, a number of cases were got registered by these rival groups at PS Mauaima. Details of these cases are as under:

(IV) Case Crime No. 179/2016 dated 29.06.2016 U/s 147, 148, 149, 364, 302, 201 IPC of Police Station: Mauaima, Prayagraj (placed at serial no.26 in the preceding paragraph no.7) Findings of State Police: Charge-sheet was filed against all 05 FIR named accused persons u/s 147, 148, 149, 364, 302 and 201 IPC. On conclusion of trial, all five accused were convicted vide order dated 08.05.2021 and sentenced for life imprisonment by the trial court and presently they are lodged in the Naini Jail, Allahabad Enquiry of CBI: The complainant and 04 accused persons are neighbours while accused Devanand Yadav is the husband of Pradhan (Pradhan Pati) of their village. Pradhan of the village allotted Govt. Land on Lease to Santlal, Rajbahdur and Ramsevak equally. Davanand Yadav in the capacity of Pradhan Pati helped Santlal to get the possession of patta of said Land from Rajbahadur in the presence of Revenue Officer on 11.05.2016. Diwakar Mishra was having election rivalry with Santlal and Devanand Yadav as wife of Devanand Yadav defeated Diwakar Mishra's wife.

Before the murder case, The daughter-in-law of Raj Bahadur i.e. the Sunita lodged rape FIR No 176/2016 dated 26.06.2016 U/s 376 IPC relating to commission of rape upon her minor daughter alleging that Anil Kumar (13 years old) S/o Sant Lal committed rape upon the victim aged about 07 years on 05.06.2016. Sunita got her treated by local doctor and lodged FIR after 21 days of the alleged rape Anil Kumar was arrested on 27.06.2016. On 28.06.2016, allegation of rape could not be confirmed in the medical examination of the victim She was called by the Medical Officer, the next day i.e. on 29.06.2016. However, before the victim could appear before the medical examiner/ doctor, she was murdered in the intervening night of 28/29.06.2016. The IO of the State Police did not examine Doctor Bal Govind who was consulted to treat Babita on 05.06.2016 and afterwards.

The witnesses cited by the State Police namely Ramsevak, Satyaprakash and Makhan Lal confirmed the suspicious presence and movement of Ramesh, Sunita, Jeetlal @ Chutnu and Ram Sunder at the house of Raj Bahadur on the night of 28.06.2016, and at the field of Santlal where Babita's body was found.

Anil s/o Basantlal (brother of Sant Lal) had alleged that Sudhakar Mishra and Diwakar Mishra (both brothers) took money from him promising him that they will get his father Basant Lal released as their target was Devanand Yadav and not his family members.

During investigation by State Police, clothes of the victim which were worn by the victim at the time of alleged rape and murder, were not sent for Forensic examination. During the trial, the lady doctor who had examined victim stated that injuries relating to the rape upon 7 year old child, were not found on the body. Further, the medical examination of accused Anil who was a minor i.e. aged 13 years at the time of incident to ascertain whether he was competent for sexual activity or not, is not on record.

According to Post mortem report, food in the stomach of the victim was not fully digested. She was murdered within 03 hours after having her last meal. As per the Doctor who had conducted the post mortem, the general time of food digestion is around 04 hours and in the case of minor girl, it would be less than 04 hours. If she was kidnapped at around 1.30 AM and murdered later on, it means she had had her food not before 10.30 PM. But in her statements Sunita and Rajbahadur had stated that all family members had slept around 08-09 PM at that night which indicate that they must have taken their dinner by that time. It means Babita was murdered before 12.30 AM, not after 01:30 AM which was the time of her abduction. Investigation on this aspect was not conducted.

Similarly, no investigation regarding movement/ presence of all 05 accused persons at the time of incident was conducted, as residence of Devanand Yadav is situated in other village ie Chhata which is more than 02 KM away from the scene of crime. Motive in respect of Devanand Yadav to kill the victim/deceased is absent.

According to FIR, family of the victim/deceased first informed State Police through dial 100 about kidnapping of the victim/deceased. The records of dial 100 and statement of the concerned official are not on record.

Smt. Sunita, mother of the deceased died around 02 months ago due to cancer as stated by her father in Law.

Finding of the C.B.I:- It is a fact that a minor girl was murdered. The trial court has already scrutinized the evidence produced before it and convicted the accused persons.

(V) Case Crime No. 680 of 2021 dated 03.12.2021 U/s 376-D, 452 & 506 of IPC, Section 3 & 4 of POCSO Act and Section 3(2)(v) of SC/ST Act. of Police Station: Mauaima, Prayagraj (placed at serial no.20 in the preceding paragraph no.7) Enquiry of State Police: Both the victims "A" and "B" sister of victim "A" in their statements recorded u/s 161 and 164 Cr.PC. 1973 had denied occurrence of any

such incident. They revealed that there was a property dispute due to which this case was got registered. When the victims were brought for their Medico Legal Examination, they refused the same in writing to the Medical Officer. Accordingly, the State Police filed a closure report dated 02.03.2022 before the Court of Ld. Special Judge, SC/ST, Prayagraj.

Findings of CBI:- Enquiry has revealed that earlier another FIR No. 0679 of 2021 dated 03.12.2021 U/s 376-D, 323, 504, 506 and Section 3(2)(v) of SC/ST Act was lodged by victim Diwakar Mishra & his two other associates, all residents of Chhata, Mau Aima, Prayagraj alleging that the victim was raped by them on 17.11.2021 and 01.12.2021 However, during CBI enquiry, victim stated that she was molested by the accused and not raped by them.

Enquiry has revealed that Shubhash @ Kallu, brother of complainant had been working as labourer at the residence of Diwakar Mishra and Sudhakar Mishra for the last 7-8 years. In response to the above mentioned FIR No. 679/2021 lodged by victim against Diwakar Mishra and his associates, the present FIR no. 680/2021 was got lodged through Anita against Surendra Kumar (husband of victim) & 5 others for creating pressure on victim as well as on Dharmendra Yadav @ Babloo. It has also been revealed that with the efforts of Smt Sushma Bharti, a local politician and Shri Ram Tirth Yadav, Gram Pradhan, Mau Aima, a compromise was arrived at between the complainant and accused persons of both these cases. As a result, both the complainants agreed to withdraw the cases on the basis of investigation and statements recorded u/s 161 and u/s 164 Cr.PC, 1973 of the complainants wherein they had denied the incidents of rape and stated that FIRs were lodged due to property disputes, Closure Reports dated 02.03.2022 were filed in both the cases with the recommendations for action u/s 182 (1) Cr.PC against the complainants of both the cases.

Findings of the C.B.I:- Thus, both the FIRs No. 679/21 and 680/21 of PS Mau Aima are not based on genuine facts and were registered due to enmity between Diwakar Prasad Mishra/ Sudhakar Mishra and Dharmendra Yadav @ Babloo and their supporters.

(VI) Case Crime No. 233/2007 dated 22.08.2008 U/s 198(Ka), 323, 504, 506, 452, 307, 394, 147, 148 IPC PS Mau Aima, Allahabad. (placed at serial no.4 in the preceding paragraph no.7) Findings of State Police: Chargesheet has been filed by State Police before the competent Court Enquiry of CBI: The accused have stated that no such incident had taken place and that due to the political rivalry, this FIR was filed by Sh. Diwakar Mishra against them. It has come to notice that accused Balbir Singh Yadav was only 11 years old at the time of incident.

Shri Harikesh Pandey, an accused in his statement stated that some quarrel had taken place. He stated that he was in his house when he heard a loud hue and cry. He went to the spot and saw Devanand and other people near the house of Banshi Mishra Soon after police came and took away Diwakar with them on motor cycle. He was not involved in the fight but had been made as an accused Finding of the CBI:- From the statements of both parties and independent witnesses and documents available on record it is inferred that some fight had actually taken place between Diwakar and Devanand on the date of incident. Role of accused can at best be appreciated during the trial.

(VII) Case Crime No. 112 of 2010 dated 10.03.2010 U/s 307, 323, 504, 506, 324 IPC of Police Station:- Mauaima, Prayagraj (placed at serial no.5 in the preceding paragraph no.7) Findings of State Police: On conclusion of investigation, State police filed chargesheet against Devanand Yadav. The other accused Lavkush committed suicide during investigation. The accused has been convicted after trial.

Findings of CBI: Diwakar Mishra handed over the judgement dated 04.07.2012 of the A.D.J., Allahabad. Perusal of the judgement revealed that Devanand Yadav was convicted for 10 years of rigorous imprisonment. The said time period of punishment has already expired on 03.07.2022. Since, a judicial finding is already on record in this case, one of the accused namely Lavkush Vishvakarma had expired during investigation and the other accused Devanand Yadav has completed his sentence pursuant to the judicial verdict, no further enquiry was conducted as of now.

(VIII) Case Crime No. 270 of 2019 dated 18.06.2019 U/s 147, 323, 392, 504, 506 of IPC and 7 of Criminal Law Amendment Act 1932 of Police Station: Mauaima, Prayagraj (placed at serial no.27 in the preceding paragraph no.7) Findings of State Police: After completion of investigation chargesheet dated 23.10.2019 u/s 147, 323, 504, 506 IPC was filed against Dharmendra Kumar Yadav & 17 others. The matter is under trial. Accused Om Prakash Patel and Punwasi Bind were not chargesheeted.

Findings of CBI: During the course of enquiry it is revealed that there was an election for allotment of Government Food Shop in Gram Panchyat Chhata. There were two candidates vying for the Government shop, one was Shri Ram Bahadur Bind (who was supporter of Dharmendra Yadav @ Babloo whose mother was Gram Pradhan of Chhata) and other was Shri Chedi Patel (who was supporter of Diwakar & Sudhakar Mishra). During the course of election, the differences between two opposite parties led to the fight amongst the villagers.

Enquiry further revealed that a cross FIR No. 271 of 2019. PS Mau Aima, u/s 147, 223 and 506 IPC was lodged by Smt. Kanchan Devi W/o Munshi Lal @ Chinni, Rio Vill. Chhataa Prayagraj against Diwakar Mishra, Sudhakar Mishra & 3 others alleging that her husband (Shri Munshi Lal Patel) was badly beaten by the accused persons. This case has also been charge sheeted. Thus trial of both the cases is pending in the Court at Prayagraj and the role of respective accused can be appreciated during the course of trial.

(IX). Case Crime No. 142/2012 dated 08.05.2012 U/s 149, 323, 452, 504, 308, 508, 506 IPC PS Mau Aima, Allahabad.(placed at serial no.23 in the preceding paragraph no.7) Findings of State Police: Details are awaited from State Police. Case was charge sheeted U/s 323, 324, 504, 506, 308 IPC.

Findings of CBI: Complainant Sudhakar and Shobhnath (main accused) were having a land dispute between them. On 08.05.2012, at about 17:00 hrs Diwakar and Shobhnath came across each other at the Tea shop of Ashok Jaiswal, Chhata Chaurah and an argument ensued which led to a fight amongst them. The incident had taken place, role of individual accused persons can be looked into during the course of trial.

(X) Case Crime No. 416 of 2011 dated 23.10.2011 U/s 147, 392, 452, 504, 506 and 427 IPC and Section 7 CLA of Police Station: Mauaima, Prayagraj (placed at serial no.6 in the preceding paragraph no.7).

Findings of State Police: Chargesheet dated 28.11.2011 was filed against Doodh Nath & 8 other all residents of Village- Gharauta, Police Station. Mau Aima, Allahabad u/s 147, 323, 504, 506 and 427 IPC before the Court of Ld. Special CJM, Prayagraj Eight persons including Devanand etc., all residents of Village- Chhata, Police Station: Mau Aima. Allahabad were not chargesheeted.

Findings of CBI: There are two rival groups in Village- Chhata one group stands in support of Shri Diwakar Mishra and his family members and other group support Devanand Yadav (whose wife has been/is Gram Pradhan of Village- Chhata). It is revealed that incident as alleged in the FIR took place at the Ram Leela. But Shri Diwakar Mishra had not only named the persons involved in the quarrel in his complaint but also named the supporters of rival group of his village- Chhata who were actually not present in the fair.

Enquiry has further revealed that during the trial of the instant case, all the witnesses including the complainant turned hostile and the learned Court of Special Chief Judicial Magistrate, Allahabad vide judgment and order dated 12.09.2014 acquitted all the accused persons.

(XI). Case Crime No. 30/2013 dated 01.02.2013 U/s 506, 507, 115, 120- B IPC of Police Station: Shivkuti, Prayagraj (placed at serial no.9 in the preceding paragraph no.7) Findings of State Police: After investigation chargesheet dated 07.04.2013 was filed before the concerned trial Court. The case is presently under trial.

Finding of CBI: Nothing incriminating has surfaced during the course of enquiry conducted so far to question the findings of State Police in the matter.

(XII) Case Crime No. 97 of 2022 dated 05.03.2022 U/s 147, 323, 504, 506, 452 and 427 IPC of Police Station: Mauaima, Prayagraj: (placed at serial no.23 in the preceding paragraph no.7) Findings of State Police: This case is still under investigation Enquiry of CBI: It has been revealed that on 04.03.2022. Vijay Kumar, Driver of Diwakar Mishra/ Sudhakar Mishra was transporting produce of their mustard crop from the agricultural field. On the way his tractor passed through the field of Rakesh Kumar, where there were trees of Eucalyptus. Wife of Sushil Mishra objected to this trespass and there was altercation between her and mother of Diwakar Mishra. Vijay Kumar, Driver of Sudhakar Mishra stated that only altercation had taken place and none was beaten/ threatened. He has also stated that Rakesh Mishra, Sushil Mishra and Piyush Mishra were not present at the time of altercation. He has further revealed that it is not correct that Rakesh Mishra, Sushil Mishra, Piyush Mishra, Chhaya Mishra and Neetu Mishra entered into the house of Sudhakar Mishra and beaten up the family members and also damaged the property.

The accused persons have stated that on 05.03.2022, on the issue of passage of tractor through the fields of Rakesh Mishra, the family members of Diwakar Mishra entered into the house of Rakesh Mishra and beaten his family members. Despite the fact that the family members of Rakesh Mishra

were beaten, FIR was lodged by Diwakar Prasad Mishra against them. Piyush Mishra Slo Sushil Mishra has stated that at the time and date of incident, he was at Prayagraj for coaching and he was not aware about the incident.

Enquiry further revealed that in the same matter, a cross FIR No. 101 of 2022 dated 09.03.2022 u/s 147, 452, 323, 504, 506 and 354 IPC was lodged by Shri Rakesh Mishra at Police Station. Mau Aima, Prayagraj against Diwakar Mishra brother of Sudhakar Mishra and 6 others.

Finding: On the basis of above facts, it appears that Shri Sudhakar Mishra and his family members were the aggressors but got an FIR registered against the victim by misrepresenting the facts. Subsequently, a counter case has also been registered by the other party on the same incident. Both these cases are still under investigation.

(XIII) Case Crime No. 218/2012 U/s 279/337/338 IPC. Police Station: Shivkuti, Prayagraj (placed at serial no.19 in the preceding paragraph no.7) Findings of State Police and present status of the case: The alleged incident was found truthful and FIR named accused Ramesh Kumar was charge-sheeted.

Findings of CBI: Nothing has come on record during the course of enquiry conducted so far to contradict the chargesheet filed by State Police (XIV). Case Crime No. 154/2016 dated 10.09.2016 U/s 147, 323, 447, 452, 504, 506, 427 IPC Police Station: Baharia, Prayagraj (placed at serial no.11 in the preceding paragraph no.7) Findings of State Police: On conclusion of investigation, chargesheet was filed against the FIR named accused person U/s 147, 323, 447, 452, 504, 506, 427 IPC. The case is under trial.

Enquiry of CBI: Enquiry has revealed that Om Prakash borrowed Rs 1.6 lacs from Radheshyam and purchased a piece of Abadi land from Bhola Harijan on 08.09.2016. He was constructing a boundary wall on the said land on 10.09.2016. When Prabhat Mishra got to know about this, he reached his village with his associates and beaten Om Prakash Mishra and demolished the said boundary. The piece of said land does not belong to Prabhat Kumar Mishra. Prabhat Kumar Mishra objected to the said construction because he was annoyed at the said deal which was done without his knowledge. Further, he had some land disputes with Om Prakash Mishra and Bhola separately.

The said incident took place but the incident was represented with distorted facts. Actually, Prabhat Kumar Mishra and his associates lodged another FIR No. 299/2016 dated 10.09.2016 against Om Prakash Mishra & others U/s 447, 507, 506 IPC Police Station: Shivkuti, Prayagraj before reaching his village Hariram Patti @Katnai, where they had beaten Om Prakash Mishra and demolished his boundary and also lodged an FIR against Om Prakash Mishra & others as victim of this case.

During investigation, the State Police had not collected CDRs of the accused persons. No efforts were made to find out the truth by knowing the location of accused persons as one of the accused persons Sushil Kumar is the employee of IFFCO, Phoolpur Prayagraj. He was present at home within the premises of IFFCO and was in office from 02:00 PM to 06:00 PM at his work at IFFCO on the relevant day.

Finding: Prabhat Kumar Mishra alongwith his associates Sudhakar Mishra and others, reached Prabhat's village. Prabhat and his advocates outnumbered his opponents Om Prakash & others. They beat Om Prakash and demolished his boundary wall. Though Prabhat appears to be the offender and did the crime but he represented himself as victim and lodged two FIRs against Om Prakash Mishra and others on that day.

(XV) Case Crime No. 277 / 2017 dated 14.09.2017 u/s 323, 504, 506 of IPC Police Station: Shivkuti, Prayagraj: (placed at serial no.15 in the preceding paragraph no.7) Findings of State Police: The State Police chargesheeted the FIR named accused persons on the basis of oral evidence of Shiv Kumar Gupta and Vijay Pandey. The matter is under trial.

Findings of CBI: The FIR named accused persons have denied that any such incident took place. Witnesses, Shiv Kumar Gupta and Vijay Pandey are close associates of Prabhat Kumar Mishra and the veracity of their statements cannot be verified at this stage. After more than 05 years of the alleged incident and the threats about registration of false cases against him and others. Since the case is under trial, the roles of respective accused can be better appreciated by the Ld. Trial Court.

(XVI) Case Crime No.299/2016 under Sections 447, 507, 506 IPC Police Station: Shivkuti, Prayagraj: -(placed at serial no.10 in the preceding paragraph no.7) Findings of State Police: The alleged incident was found to be false and IO filed the closure report in this matter.

Finding of CBI: Nothing incriminating has surfaced so far during the course of enquiry to question the finding of State Police (XVII) Case Crime No. 381/2017 dated 20.04.2017 U/s 506 IPC Police Station: Colonelganj, Prayagraj (placed at serial no.29 in the preceding paragraph no.7) Findings of State Police: During investigation, the alleged incident of SMS was found truthful and Harshu Prasad was chargesheeted accordingly. The case is under trial.

Findings of CBI: Nothing incriminating has surfaced during the enquiry to question the findings of the State Police (XVIII) Case Crime No. 47/2016 (NCR) dated 22.09.2016 U/s 323, 504, 427 IPC, Police Station: Kydganj Prayagraj (placed at serial no.12 in the preceding paragraph no.7) Findings of State Police and present status of the case: After concluding investigation, state police chargesheeted FIR named accused u/s 323, 504, 427 IPC on 26.11.2016.

Enquiry of CBI: Enquiry revealed that all the FIR named accused persons were not given the opportunity to explain their version regarding the alleged incident. On being shown the notice u/s 41(1) of Cr.P.C., 1973 accused Om Prakash Mishra denied his signatures on the said notice. Accused Dharayandra Mishra was not contacted by the IO regarding this case. However, in the case diary it is mentioned that Dharayandra Mishra had refused to put his signatures on the notice u/s 41(1) Cr.P.C., 1973. Accused Harshu Mishra was called by IO of this case at IO's residence near Kutchehry. When he reached there, he got to know that Prabhat Kumar Mishra had lodged an FIR as mentioned above. He informed the IO that the alleged incident was false and at the alleged time of incident he was present at his work place. He was assured by the IO that he would do fair investigation and asked him to sign notice u/s 41(1) Cr.P.C., 1973. Signatures of Harshu (as per his version) were taken by the IO on blank notice u/s 41(1) Cr.P.C. 1973.

Further, CDRs of the accused persons, the complainant and the witnesses namely Vikas Shukla, Satya Sakshi Tiwari, Nangi Lal were not taken to establish the exact locations of the concerned person to find out the truth. One of the accused Harshu Prashad, Helper in NCR, Allahabad was attending his duties at Chivki Railway Station from 2.00 pm to 10.00 pm on the date of incident. Hence, the allegation of the complainant that he was beaten up by Harshu Prasad & others on 21.09.2016 at around 19:00 PM did not appear to be correct.

Finding: Therefore, this case lodged by Prabhat Kumar Mishra against his rivals Harshu Mishra, Om Prakash Mishra and Dharayandra Mishra might be a motivated case in which investigation does not appear to have been conducted appropriately by the State Police.

(XIX) Case Crime No. 557/2017 U/s 147, 323, 504, 506, 427, 394 IPC, Police Station: Cantt. Prayagraj (placed at serial no.18 in the preceding paragraph no.7) Findings of State Police: The state police filed closure report in this case.

Enquiry of CBI: Enquiry has revealed that on 16.11.2017 at around 10:00 AM Dr. Ramesh Singh Thakur was abused and beaten by Prabhat Kumar Mishra, Sudhakar Mishra, Satish Shukla and Ajay Mishra, all advocates because Dr. Ramesh Singh Thakur had refused to entertain them in issuing forged medical certificate. Dr. Thakur was misbehaved and brutally beaten by them. His FIR could not be registered till night as there was tremendous pressure from Prabhat Kumar Mishra, Sudhakar Mishra and their associates. After intervention by District Magistrate, Prayagraj Cant. Police registered FIR No. 553/2017 U/s 352, 353, 332, 504, 506, 427, 511 IPC and u/s 3 Medicare Act late in the night.

After registration of this FIR. Dr. Ramesh Thakur stated that he was pressurised to withdraw his FIR. When he denied. Prabhat Kumar Mishra and Sudhakar Mishra lodged this false FIR No. 557/2017 dated 17.11.2017 U/s 147, 323, 504, 506, 427, 394 IPC against Dr. Ramesh Thakur and Dr. Dwivedi to compel him to compromise in this matter.

Despite knowing the facts, Police lodged the false cross FIR under pressure from Advocate Prabhat Kumar Mishra, Sudhakar Mishra and their associates. As there was no other way left for Dr. Ramesh Thakur, he compromised with Prabhat Kumar Mishra and Sudhakar Mishra. IO Brijesh Kumar Gautam, SI filed the closure report mentioning that he was unable to find the name and address of the accused persons.

Finding of the C..B.I.: Thus, this case appears to have been falsely lodged by Prabhat Kumar Mishra and Sudhakar Mishra against Dr. R.S. Thakur to compel him to withdraw FIR No. 553/2017 lodged by Dr. Ramesh Singh Thakur against them.

(XX) Case Crime No. 361/2016 dated 26.10.2016 u/s 147, 323, 504, 506 and 379 of IPC and Section 3(2) (v) of SC & ST Act. Police Station: Shivkuti, Prayagraj (placed at serial no.13 in the preceding paragraph no.7) Findings of State Police: IO received the affidavit of four advocates namely Mayank Mishra, Shivji, Rakesh Kumar and Rajesh Kumar regarding the truthfulness of the incident as alleged by Sunil Kumar in the capacity of eyewitness of the incident disclosing the name of two

unknown persons as Ashutosh Mishra S/o Harshu Prashad and Suraj Mishra S/o Om Prakash Thereafter, their names were added as accused in the case. On conclusion of investigation, charge-sheet was filed against Rohit Mishra, Om Prakash, Dharmendra Kumar, Harshu Prashad Ashutosh Mishra and Suraj Mishra u/s 147, 323, 504, 506 and 379 of IPC and Section 3(2) (v) of SC & ST Act. The case is presently under trial.

Enquiry of CBI: The complainant Sunil Kumar was saved by Shivji & others from beating as per FIR However, four advocates as eyewitness to the incident gave affidavits to IO subsequently The names of three advocates out of four were not mentioned in the said complaint although all three advocates are well known to the complainant. It raises suspicion as to why complainant had forgotten their names at the time of filing of the complaint. Dharayandra Kumar is the junior of Sh. Girja Pati Tripathi, Advocate and was present with him during the day at the court on the date of incident. At the time of incident i.e. from 05:00 PM to 05:45 PM, Dharayandra Kumar was with him at his work place ie seat no. 15, 84 Khambha District Court, Prayagraj. At that time there were other advocates namely Ramesh Kumar Tiwari, K.□ Shukla, S.K. Tripathi, A.K. Mishra, S.K. Mishra and A.K. Rai who were also present at his work place. Sh. Girja Pati Tripathi and his senior Ramesh Kumar Tiwari both had given affidavits dated 18.11.2016 to SSP and CO in this regard but the same were not taken on record did not record the defence of accused persons and their plea of alibi was not taken on record. Harshu Prasad was present at his work place in Railway Office and two officials/officers had given affidavits about his presence at the work place at the time of alleged incident. Om Prakash Mishra was present at village Dighwat. Pratapgarh in a Pooja, Sh. Anil Kumar Ojha had given the affidavit regarding his presence there at the time of alleged incident. Sh. Abhishek Shukla had given his affidavit regarding presence of Rohit Mishra in Jhalwa College, Allahabad at the time of alleged incident. Principal of School gave certificate regarding presence of Suraj Mishra in the school at the time of incident.

Finding of the C.B.I.: IO of State Police did not make any effort to establish the truthfulness of the incident. No CDR of alleged accused persons or the complainant and the four advocates who gave the affidavits in the capacity of eyewitness were obtained. Suraj Mishra was just 14 years old boy (born on 25.07.2002) at that time. He was chargesheeted as adult not as juvenile.

Sunil Kumar had received 1.5 lacs as Govt. compensation in this case.

(XXI) Case Crime No. 90/2021 dated 01.03.2021 U/s 342, 376D, 506 IPC of Police Station:-Mauaima, Prayagraj (placed at serial no.39 in the preceding paragraph no.7) Findings of State Police: On the basis of victim's statement recorded u/s 164 Cr.P.C., 1973 accused Md. Wasim and Chandrabhusan were arrested. Presently both are on bail. In this matter, chargesheet has been filed against 04 accused persons namely Wasim, Samlagiri, Chandrabhusan Singh and Rakesh Nath Pandey Investigation is pending in respect of remaining 04 accused persons namely Rajesh Kumar Patel, Deva, Indradev and Brijesh Kumar all resident of village Gheenpur.

Enquiry of CBI: Initially complainant Archana Singh filed a complaint u/s 156 (3) of Cr. PC, 1973 through her counsel Sudhakar Mishra, Advocate on 07.01.2020 in the Lower Court to register an FIR against Rajesh Patel S/o Ramadhar, Wasim S/o Sabbir, Shubham @ Sonu S/o Ram Sevak,

Mahendra Slo Sukhambar and Brijesh Kumar S/o Ram Charan all residents of Village Gheenpur, Mauaima, Prayagraj alleging therein that all of them raped her. When the Court of Judicial Magistrate called for the police to report in the matter of rape of Archana Singh, Police filed a report dated 21.01.2020 stating that allegations of rape were found to be false.

In response to the above mentioned application, on 03.12.2020, Wasim Ali through his counsel Rakesh Nath Pandey, Advocate filed an application u/s 156(3) Cr.P.C. against Smt. Archana Singh, Awdhesh Singh, Brijesh Shukla, Rajesh Shukla, Ram Sajiwan Patel and Radheysham Saroj alleging that they had filed an application u/s 156(3) Cr.P.C. to lodge an FIR with the malafide intention to implicate him and others in the false rape case of Archana Singh. The Hon'ble Court called for report from the SP. crime, Prayagraj in this regard. In response, the police registered FIR No. 90/2021 dated 01.03.2021 U/s 342, 376D, 506 IPC of Police Station:-Mauaima, Prayagraj after getting a fresh application from Archana Singh. After the registration of FIR, Archana Singh withdrew the application u/s 156(3) Cr.P.C. informing the Hon'ble Court that FIR in her rape case has been registered in Police Station: Mauaima.

It is pertinent to mention that in the application on the basis of which the said FIR was registered, the entire facts regarding rape time, incident and number of accused persons are different from the facts mentioned in application filed u/s 156(3) Cr.P.C., 1973 These variations are highlighted here as under-

* In the FIR, Archana Singh had alleged that she was called from her home by Samlagiri on 21.12.2019 at 09:00 PM whereas in the application u/s 156(3) filed on 07.01.2020 she had alleged that she was kidnapped by 04 named persons at 07:00 PM when she had gone out for toilet.

In the FIR she had named Rajesh, Deva, Inderdev, Wasim. Brijesh Kumar, Rakesh Nath Pandey, Chandrabhushan and Samlagiri for the rape offence whereas, in the complaint u/s 156 (3) Cr.PC she had named Rajesh Patel, Wasim, Shubham @ Sonu, Mahindra and Brijesh Kumar as the offenders.

* Out of five alleged offenders mentioned in the application u/s 156(3) Cr.PC only 03 were mentioned in the complaint which contained five new names which were not initially mentioned in the application u/s 156(3) Cr. PC.

Rakesh Nath Pandey was stated to be implicated in false Rape case as he was representing Wasim Ali against Archana Singh in the Magistrate Court as mentioned above.

Rajesh Patel stated that he was framed due to his political rivalry with Ram Sajiwan (close associate of Sudhakar Mishra) He was not present on 21.12.2019 (date of alleged rape incident) in his village as he was at the residence of Dr. R.K. Verma, M.L.A in Lucknow. Due to his political aspirations for Gram Pradhan, he had also been targeted previously in another fake case bearing FIR No. 588/2019 Police Station: Mau Aima dated 15.12 2019 against him and one Deva on the complaint of Anita Devi (sister in law of Deva) W/o Shri Rajendra Kumar Pasi at the behest of Shri Ram Sajiwan. The State Police had filed closure report in this case. Shri Rajesh Patel had submitted 01 audio of Shri Awadhesh, husband of Smt. Archana Singh asking money for removing his name from the alleged

rape case. Rajesh Patel paid Rs. 50,000/- in cash after which Archana and Awadhesh accepted that Rajesh had been falsely implicated in said rape case which was recorded by Rajesh Patel in a video. Further, Smt. Archana Singh gave an affidavit dated 25.09.2021 stating that Rajesh Patel had not committed any offence and his name was included by mistake.

Another accused Shri Chandra Bhushan Singh is brother of Sh. Awadhesh Singh, husband of Smt. Archana Singh. Sh. Awadhesh Singh and his wife demanded money from him and his wife; threatening him that otherwise he would be implicated in the false rape case by Smt. Archana Singh. He did not pay any money. therefore, he was implicated in the false rape case by Archana Singh. Chandra Bhushan Singh was sent to Jail in this case.

When he was in Jail, Awadhesh Singh demanded Rs. 1 lac from Devraj Pandey @ Bhola (his friend) and Balendra Bhushan @ Lal (his elder brother) for removing his name from the alleged rape case. No money was paid by him. Deva had submitted 01 audio clip having the voice of Awadhesh asking money from him Sh. Chandra Bhushan Singh is on bail. Deva stated that he was implicated in this false rape case to extract money. Deva's brother Mahindra was demanded money to remove his name from the rape case. Mahindra paid Rs. 14000/- to Awdhesh. He paid Rs 9000/- in cash and Rs. 5000/- was paid from the account of his wife to the account of Sh. Awdhesh Singh. After taking money. Smt. Archana Singh gave an affidavit dated 23.05.2022 stating that Deva had not committed any offence and his name was included by mistake Archana Singh had given an affidavit that Samlagiri was not involved in her rape case.

Due to filing of the case in the court of CO Sadar Allahabad (now Prayagraj) regarding illegal possession on Govt. land (ie Talab & Naveen Parti land) by Ram Sajiwan Patel and Rajesh Shukla by Inderdev Prasad, Wasim and Brijesh Kumar enmity was created between both the groups. Ram Sajiwan Patel and Rajesh Shukla both are close associates of Sudhakar Mishra and Diwakar Mishra. This appears to be the reason that Inderdev Prasad, Wasim and Brijesh Kumar were implicated in false case of Archana Singh.

Finding of C.B.I:- Thus, it appears that FIR No 90/2021 was registered by Archana Singh in conspiracy with her husband Awadhesh Singh. Ram Sajiwan Patel, Rajesh Shukla and Sudhakar Mishra to settle their scores and to extort money from the accused In this case, four accused persons have been chargesheeted by the State Police and further investigation is pending against remaining four FIR named persons.

(XXII) Case Crime No. 317/2018 U/s 452, 323, 504, 427, 394, 354 (Kh), 324 of IPC and Section 7 of Criminal Law Amendment (CLA) Act of Police Station: Mauaima, Prayagraj (placed at serial no.40 in the preceding paragraph no.7) Findings of State Police: After completion of investigation chargesheet dated 07.02.2021 was filed against Ram Padarath Yadav, Kuldeep Yadav, Rakesh Kumar Yadav and Yamraj Yadav U/s 323, 504, 427 and 336 IPC before the Court of Ld. Spl. CJM. Prayagraj.

Findings of CBI: Nothing incriminating has surfaced so far during the course of enquiry to question the findings of the State Police.

(XXIII) Case Crime No. 72/2018 dated 13.02.2018 U/s 147, 452, 323, 506 and 436 IPC of Police Station: Mauaima, Prayagraj (placed at serial no.41 in the preceding paragraph no.7) Findings of State Police: After completion of investigation chargesheet dated 21.06.2018 was filed against Lalji & 5 others u/s 247, 323, 504, 506 and 435 IPC before the Court of Ld Chief Judicial Magistrate. Prayagraj Three of the accused have not been chargesheeted Enquiry of CBI: Enquiry has revealed that on 13.02.2018 at about 07:00 AM, the Bhabhi of Ram Padarath was dumping earth on the Gram Samaj land and when objected to by the complainant, the accused persons reached there, beat him up and forcibly released the cattle of the complainant and burnt his hut.

Phool Chandra Yadav, Ram Sevak Yadav, Ram Kailash Yadav, Prithwi Pal and Amraj Yadav, cited as witnesses by State Police were examined during the course of enquiry and they have stated that at that time they were not present at the place of incident.

Accused Ram Lal, Subhash Chandra Yadav, Kuldeep Kumar Yadav and Rakesh Kumar were also examined during the course of enquiry, they have stated that Anil Kumar Yadav S/o Ram Khelavan Yadav was encroaching the land of widow Bhabhi of Rakesh Yadav, when she opposed, they started quarreling. This incident was brought to the knowledge of Rakesh Yadav and his family members by his Bhabhi. Anil Kumar called the Police and Police brought the family members of Rakesh Yadav at the Police Station. In the meantime mother of Anil Kumar burnt the hut of the Bhabhi of Rakesh Kumar. Upon this an FIR no. 69/2018 u/s 436 IPC, PS Mau Aima was registered on 13.02.2018 on the complaint of Smt Kamla Devi against Ram Khelavan, Chatkola Devi, Anil Kumar, Sunil Kumar and Sandeep Kumar.

Finding of C.B.I: From the above facts, it is clear that FIR No. 72/2018, Police Station Mau Aima was a cross FIR to the FIR No. 69/2018 of the same Police Station. While most of the witnesses have not corroborated the incident, the accused and complainant have both confirmed the incident.

(XXIV) Case Crime No. 218/2018 dated 17.05.2018 U/s 323 and 308 IPC of Police Station: Mauaima, Prayagraj (placed at serial no.42 in the preceding paragraph no.7) Findings of State Police: After completion of investigation chargesheet dated 27.01.2019 was filed against Kuldeep Yadav & others u/s 323 and 308 IPC before the Court of Ld. ACJM, Prayagraj.

Enquiry of CBI: Enquiry has revealed that on 17.05.2018, Sushil Kumar stated that upon his return to his house, Sushil Kumar. found his brother Pradeep unconscious on the ground with blood oozing from his mouth and nose. On the way he had seen Kuldeep, Subhash, Rakesh, Ram Lal running from his house but he did not see them beating his brother. Shri Jagat Bahadur Yadav and Prithvi Pal cited as witnesses in this case have stated that they had never witnessed the incident. They further stated that one day prior to the examination by CBI in the present Preliminary Enquiry, Shri Ram Khelavan visited their residence and told them that they should state before CBI that they had witnessed the incident and his son Pradeep got fainted.

The accused persons have denied any such incident. Kuldeep Kumar Yadav has stated that during the period of incident he was residing at Prayagraj. Shri Subhash Chandra Yadav has stated that during the relevant period he was residing at Mumbai. Ram Lal and Rakesh Kumar stated that

Pradeep Kumar S/o Ram Khelavan was connecting electric wire on the electricity pole and due to heavy sparking he fell down from the Pole and became unconscious but Ram Khelavan along with Diwakar Mishra and Sudhakar Mishra alongwith the members of the Kishan Union, got a false FIR registered against the accused.

Finding of C.B.I: On the basis of above facts, it appears that proper investigation was not conducted by the State Police in the matter.

(XXV) Case Crime No. 82 of 2008 dated 06.06.2008 U/s 147, 148, 149, 302, 34, 120-B of IPC of Police Station:- Baharia, Prayagraj (placed at serial no.17 in the preceding paragraph no.7) Findings of State Police: Charge-sheet was filed on 06.06.2008 against all FIR named accused persons on the basis of statements of the witnesses who had eye-witnessed the incident as per the complaint.

In the year 2016, this case was further investigated on the order dated 22.03.2016 of the Sr. Supdt. of Police, Prayagraj which was based on audio video recording of confession of crime by one Vijay Mishra. During further investigation, Vijay Mishra was arrested. Later, his involvement was not found in the alleged crime and on the report u/s 169 Cr.P.C. of CrPC, 1973 the Ld. Court exonerated him. The case is presently under trial.

Enquiry of CBI: In 2016, police conducted further investigation on the basis of audio video recording of confession of crime by one Vijay Mishra but State Police did not investigate the motive of murder by Vijay Mishra, presence of accused at the crime scene scrutiny of audio video contents and it's scientific examination etc Initially police found sufficient evidence to prove the involvement of Vijay Mishra in the murder, however, later Vijay Mishra was given clean chit on the basis of a character certificate by his employer and the statement of witnesses mentioned in this FIR.

Finding of CBI:- Thus, the points on which further investigation was ordered by SSP, Prayagraj were not found to be complied with during further investigation. It would be appropriate if the same were probed thoroughly.

(XXVI) Case Crime No. 370 of 2019 dated 20.08.2019 U/s 366 IPC of Police Station: Mauaima, Prayagraj (placed at serial no.21 in the preceding paragraph no.7) Findings of State Police: During State Police investigation. allegation u/s 366 of IPC was substantiated against Surya Prakash S/o Mishri Lal Saroj, R/o Village- Sarai Lalu, Mau Aima, Prayagraj Accordingly, Chargesheet dated 07 10 2019 was forwarded to the Senior Officers for approval but Section 363 and 376 of IPC were also added in the chargesheet which was filed before the Court of Ld. Special CJM, Prayagraj Findings of CBI: It was revealed that on the night of 20.08.2019 daughter of Magru (aged about 19 years) was missing from her home and was found at about 0130 Hrs in the house of Mishri Lal. It has been revealed that there was love affair between Madhuri (then aged 19 years) and Surya Prakash. On the night of incident Madhuri on her own had gone to the house of Surya Prakash to meet him and was found there. Medico Legal Examination of Madhuri revealed that "There are no signs of use of force, however, final opinion is reserved pending availability of FSL Report. Sexual violence cannot be ruled out." Trial of this case is pending in Fast Track Court at Prayagraj and the facts of the case can be appropriately appreciated during the course of trial.

(XXVII) Case Crime No. 128/2005 dated 29.08.2005 U/s 323, 504, 506, 452, 394, 307 IPC PS Mau Aima, Allahabad (placed at serial no.3 in the preceding paragraph no.7) Findings of State Police: Both parties lodged complaint. Cross FIR was lodged by the other party. Both cases have been closed after mutual compromise between the parties.

Findings of CBI: Nothing incriminating has surfaced during the enquiry conducted so far regarding falsity of this case.

(XXVIII) Case Crime No. 420/2021 dated 24.07.2021 U/s 307, 341, 504 IPC PS Mau Aima, Allahabad.(placed at serial no.46 in the preceding paragraph no.7) Findings of State Police: Investigation revealed that at the time of incident, the location of accused was proved to be at some other place. Thus, the FIR named accused persons were not found to be involved in the incident. The complainant created a false story against the accused person to grab the disputed land. Accordingly, a closure report was filed on 25.01.2022 against them Findings of CBI: The Enquiry revealed that the State Police appear to have arrived at a just conclusion and filed closure against the FIR named accused.

(XXIX) Case Crime No. 240 of 2017 dated 20.06.2017 U/s 323, 427, 504, 506 of IPC and Section 3(2)(v) of SC/ST Act of Police Station: Mauaima, Prayagraj (placed at serial no.43 in the preceding paragraph no.7) Findings of State Police: Chargesheet dated 31.08.2017 was filed before the Court of Ld. Special Judge, SC/ST Cases, Prayagraj u/s 323, 427, 504 and 506 of IPC and Section 3 (2) (5-a) of SC/ST Act against accused persons. Trial of this case is pending in the Court of Ld. Special Judge, SC/ST Act, Prayagraj Govt. of U.P. has given compensation of Rs. 75,000/- each to Phool Chandra and Vijay Kumar.

It has been revealed that Phool Chandra and Vijay Kumar both Rio Chhata and drivers of Diwakar Prasad Mishra of Chhata Mauaima, Prayagraj had gone to the residence of Ram Khelawan Rio Village- Katbhar for collecting rent. At the Pulia situated near Village-Katbhar they were stopped, beaten up and abused by the accused persons who were already sitting there. Both of them rushed into the nereby house of Ram Khelawan to save themselves.

Finding of CBI: No evidence regarding falsity of the case has come to notice in this matter, during the course of enquiry conducted so far.

(XXX) Case Crime No. 87/2012 dated 12.03.2012 U/s 323, 452, 504 and 506 IPC of Police Station: Mauaima, Prayagraj (placed at serial no.8 in the preceding paragraph no.7) Findings of State Police: After investigation, chargesheet dated 12.04.2012 was filed before the Ld. Court against Dara Patel and the case is pending trial.

Findings of CBI: It appears that the incident had taken place and it is a genuine case.

(XXXI) Case Crime No. 30/2013 dated 23.01.2013 U/s 110 (g) of Cr.PC, 1973 of Police Station: Mauaima, Prayagraj (placed at serial no.9 in the preceding paragraph no.7) Findings of State Police: In this case the accused was bound down.

Findings of CBI: Nothing incriminating has surfaced to question the findings of State Police, during the course of enquiry.

(XXXII) Case Crime No. 106/2002 dated 08.03.2002 U/s 323 and 504 IPC of Police Station: Mauaima, Prayagraj (placed at serial no.24 in the preceding paragraph no.7) Findings of State Police: After investigation Report was filed in the Court of Executive Magistratete Sub Divisional Magistrate (SDM) u/s 107/116 of Cr PC, 1973 on 10.03.2002 against Mithilesh Kumar S/o Radhe and Radhe.

Finding of CBI: Nothing incriminating has surfaced to question the findings of State Police, during the course of enquiry conducted so far.

(XXXIII) Case Crime No. 302/2007 dated 01.10.2007 U/s 504, 506 and 379 IPC of Police Station: Mauaima, Prayagraj (placed at serial no.7 in the preceding paragraph no.7) Findings of State Police: After completion of investigation, chargesheet was filed on 09.12.2007 U/s 504, 506 and 379 IPC against Devanand, Raju Singh and Smt Anara Devi before the Ld. Court.

Finding of CBI: It has been revealed that accused Devanand has already pleaded guilty in this matter and vide order dated 06.04.2022. Ld Trial Court (CJM), Allahabad has sentenced him to imprisonment for the period already undergone.

(XXXIV) Case Crime No. 125 of 2005 dated 18.09.2005 U/s 279, 304-A, 427 IPC of Police Station: Mauaima, Prayagraj (placed at serial no.25 in the preceding paragraph no.7) Findings of State Police: During investigation the State Police had identified Md. Mustafa S/o Abdul Gaffur, R/o Ram Nagar Galsiyari, Police Station: Mauaima, Prayagraj as the driver of tractor. After completion of investigation State Police had filed a charge-sheet dated 19.10.2005 u/s 279 and 304-A IPC against Mohd. Mustafa before the Concerned Court at Prayagraj.

Finding of CBI: Nothing incriminating has surfaced to question the findings of State Police during the course of enquiry conducted so far.

(XXXV) Case Crime No. 92/2017 dated 06.03.2017 U/s 147, 379, 447, 323, 504, 506, 427 IPC & Sec 3(2)(v) SC/ST Act, Police Station: Baharia, Prayagraj (placed at serial no.16 in the preceding paragraph no.7) Findings of State Police: It was concluded that Om Prakash and his son Rohit were not involved in the alleged incident, hence, the SC/ST Act was removed from the case as other accused persons also belonged to the same community. On conclusion of investigation, chargesheet was filed against Bhola, Chamela and Sonu U/s 323, 504, 506, 427 IPC on 30.01.2019. The case is under trial.

Findings of CBI: Nothing has surfaced during the course of enquiry conducted so far to contradict the findings of State Police.

(XXXVI). Case Crime No. 406/2002 dated 22.09.2002 U/s 323, 504, 506, 452, IPC PS Mau Aima, Allahabad (placed at serial no.2 in the preceding paragraph no.7).

Findings of State Police: Details are awaited from State Police.

Findings of CBI: As the case is more than 20 year old, not much headway could be made in the matter in the absence of police records.

(XXXVII) Case Crime No. 181/2002 dated 20.04.2002 U/s 147, 323, 504, 506 IPC PS Mau Aima, Allahabad (placed at serial no.1 in the preceding paragraph no.7).

Findings of State Police: After completion of investigation, a chargesheet was filed against the accused persons u/s 147, 323, 504, 506 IPC During the trial, prosecution could not produce any witness. Complainant and accused entered into a compromise. On the basis of the same the accused persons were acquitted.

Findings of CBI: Sh. Om Prakash, the complainant, has admitted that he had filed complaint for the FIR, however, he was 50 meter away from the spot and the accused persons compromised with him and his brothers. The accused persons have denied any such incident.

(XXXVIII) Case Crime No. 29/2016 dated 28.01.2016 U/s 452, 504, 506 IPC of Police Station: Shivkuti, Prayagraj (placed at serial no.28 in the preceding paragraph no.7).

Findings of State Police: A chargesheet was filed on 31.05.2016 U/s 323, 504 IPC against Roopchand. Pramod Kumar Bhartiya, Manoj Kumar Bhartiya and Shankar Bhartiya. The case is still under trial.

Finding of CBI: Nothing incriminating has surfaced during the course of enquiry conducted so far to question the findings of the State Police.

Perusal of the preliminary enquiry report conducted by the C.B.I. shows the status of the cases, as under:-

Number of cases enquired by CBI No. of cases under trial Cases Concluded after trial
Cases Under Investigation Cases Closed Details awaited from Police Conviction
Acquittal Closure report Preventive Cases 01 (pertaining to 2002 The preliminary
enquiry report of the CBI being PE 0532022S0001 also shows that the Advocates are
involved as complainant or otherwise.

Sl. No. Name of Advocates behind the registration of cases as complainant or otherwise No. of Cases
Against the Advocates or others due to political rivalry Remarks

1. Sri Vinod Shanker Tripathi Bhupendra Kumar Pandey and others Filed by Nikki Devi and Mansi
Srivastava each at the behest of Vinod Shanker Tripathi.

2. Sri Bhupendra Kumar Pandey Vinod Shanker Tripathi, his father and others.

Filed by Smt. Kumsum Lata, her interest lies with Bhupendra Kumar Pandey.

Filed by Smt. Samla Giri at the behest of Bhupendra Kumar Pandey.

Three cases filed by Bhupendra Kumar Pandey.

3. Sri Sudhakar Mishra and his brother Sri Diwakar Prasad Mishra.

Devanand Yadav (Political rival of Diwakar Prasad Mishra and other villagers Filed by Ms. Anita at the behest of Diwakar Prasad Mishra.

Four cases have been lodged on the complaints of Sri Sudhakar Mishra.

Three cases have been lodged on the complaints of Sri Diwakar Prasad Mishra, brother of Sri Sudhakar Mishra.

4. Sri Prabhat Kumar Mishra and his associate Sri Sunil Kumar.

Om Prakash and others.

Dr. R.S.Thankur and another Cases related to property and personal disputes.

24. This Court vide order dated 20.10.2022 passed on the modification application no.03 of 2022 filed by Sri Vinod Shanker Tripathi, Advocate, had directed the C.B.I. to conduct the preliminary enquiry with respect to 23 cases as has been mentioned in preceding paragraph no.11. Pursuant to which, the learned counsel for the C.B.I. had placed the Preliminary Enquiry report submitted by the C.B.I. being No. PE 0532022S0002, which are in the following terms:-

(I) Case Crime No. 563/2012 (wrongly transcribed as 562 of 2012 in the order dated 20.10.2022), under Sections 457, 380, 419, 420, 467, 468, 471 I.P.C., Police Station Colonelganj, Prayagraj, (placed at serial no.1 in the preceding paragraph no.11).

Findings of State Police: After completion of investigation, the State Police filed chargesheet on 08.01.2021, U/s 457, 380, 419, 420, 467, 468 & 471 IPC against Shri Bhupendra and his brother Shri Arun Pandey both S/o late Mrityunjay Pandey.

Finding of CBI: In the year 2011 complainant Smt. Reena Agrawal had given one portion of her parental house to Shri Bhupendra Pandey on rent. Other portion of the house was being used by one Chaudhary Sahab. Due to the day to day activities of Shri Bhupendra in the house, Chaudhary Sahab had left the house. Shri Anupam Jain, immediate neighbour of the said house, had good relations with Smt. Reena Agrawal. When she asked Shri Anupam Jain to take the keys from Chaudhary Sahab, then Shri Bhupendra Pandey objected to the same. Thereafter, Shri Bhupendra Pandey filed a Civil Suit claiming the ownership over the said house on the basis of forged and bogus documents. On this Smt. Reena Agarwal lodged an FIR No. 363/2012, PS Colonelganj u/s 457, 380, 419, 420,

467, 468, 471 IPC, against Shri Bhupendra Pandey, his brother Shri Arun Pandey and others. The same was charge sheeted. As Smt. Reena Agarwal was based at Gorakhpur with her family, Shri Anupam Jain was pursuing her case in the court.

Enquiry has revealed that, subsequently, Shri Bhupendra Pandey had lodged an FIR Case Crime No. 549/ 2015 dated 05.08.2015 U/s 354 and 504 IPC, Police Station: Colonelganj, Prayagraj through his sister Smt. Manta Pandey against Shri Anupam Jain and his driver Shri Surendra. Details of the same also discussed below.

(II) Case Crime No. 549/2015 dated 05.08.2015, U/s 354 and 504 IPC, Police Station Colonelganj, Prayagraj, (placed at serial no.7 in the preceding paragraph no.11):-

Findings of State Police: The alleged incident was found to be false and IO filed closure report dated 30.12.2015 in this matter.

Findings of CBI: Enquiry has revealed that, in the year 2011, Smt. Reena Agrawal had given one portion of her parental house bearing R/o 54/17-A, B.K. Banarjee Road, PS: Colonelganj, Prayagraj to Shri Bhupendra Pandey on rent. Smt. Mamta Tripathi, sister of Shri Bhupendra Pandey used to reside with him. Another portion of the house was rented to one Mr. Chaudhary. Due to the day to day activities of Shri Bhupendra in the house, Mr. Chaudhary left the said rented house and Shri Anupam Jain, immediate neighbour, having good relations with Smt. Reena Agrawal, collected keys from Mr. Chaudhary to which Shri Bhupendra Pandey objected. Subsequently, Shri Bhupendra Pandey filed a Civil Suit claiming purchase of the said house from mother of Smt. Reena Agarwal. On this, Smt. Reena Agarwal lodged an FIR No. 363/2012, PS Colonelganj u/s 457, 380, 419, 420, 467, 468, 471 IPC, against Shri Bhupendra Pandey, his brother Shri Arun Pandey and others. The same was charge sheeted. As Smt. Reena Agarwal was based at Gorakhpur with her family, Shri Anupam Jain was pursuing her case in the court.

Enquiry has revealed that to pressurize Shri Anupam Jain, the Case Crime No. 549/ 2015 was got lodged by Shri Bhupendra Pandey through his sister Smt. Mamta Tripathi (Pandey) against Shri Anupam Jain and his driver Shri Surendra Kumar.

Enquiry revealed that subsequently, Shri Surendra Kumar had also lodged an FIR no. 554/ 2012 u/s 323, 504, 506 IPC and 3(1)(10) SC/ST Act against Shri Bhupendra Pandey, Smt. Mamta Tripathi & her husband Shri Dheeraj Tripathi.

Enquiry has revealed that after registration of the above case, Shri Bhupendra Pandey arrived at a compromise with Shri Anupam Jain and Shri Surendra Kumar in Case Crime No. 549/ 2015. Shri Bhupendra Pandey also compromised with Smt. Reena Agarwal and evacuated her house, chargesheet in the case was quashed vide order dated 16.10.2015 by moving an application before the Hon'ble High Court on the basis of the compromised arrived.

Enquiry has revealed that instant Case Crime No. 549/ 2015 dated 05.08.2015 U/s 354 and 504 IPC, Police Station Colonelganj, Prayagraj was got registered on the basis of false facts due to property dispute.

(III) Case Crime No. 82/ 2010 dated 13.03.2010 U/s 308 and 406 IPC, Police Station Civil Lines, Prayagraj, which is shown at (placed at serial no.3 in the preceding paragraph no.11).:-

Findings of State Police: After investigation, State Police had filed charge sheet on 01.04.2010 in the Court of Ld. Chief Judicial Magistrate, Allahabad against accused Shri Arun Pandey and Shri Bhupendra Pandey U/s 406, 323, 504 and 506 IPC. The case is still under trial.

Findings of CBI: The medical records of the complainant Shri Bal Krishan Tiwari reflect that he had received grievous injuries on 13.03.2010. During course of enquiry nothing incriminating has surfaced to question the findings of the State Police. It is clear that the incident had taken place and it is a genuine case. The facts of the case can be appropriately appreciated during the course of trial. Shri Bal Krishan Tiwari has expired in September, 2011.

(IV) Case Crime No. 798 of 2021 dated 14.10.2021 U/s 504 and 506 IPC, Police Station Civil Lines, Prayagraj, (placed at serial no.5 in the preceding paragraph no.11).

Findings of State Police: In this case State Police has filed chargesheet against Shri Bhupendra Pandey, Shri Arun Pandey and Shri Arvind Pandey both brothers of Shri Bhupendra Pandey U/s 504 and 506 IPC on 05.11.2021.

Findings of CBI: Complainant is a contractor, who undertakes contract for construction of houses and also supplies building material. One day he was contacted by Shri Bhupendra Kumar Pandey (Advocate), who introduced himself as a Contractor and asked him to supply one truck sand and concrete. Thereafter, the complainant visited at the site near Baghambari Gaddi, Prayagraj and supplied the required building material worth Rs. 84,000/- to Shri Bhupendra Pandey. Sh. Bhupendra Pandey issued two cheques of Rs. 40,000/- and 44,000/. for payment to the complainant. On being presented, the cheque of Rs. 40,000/- was declined due to insufficient funds in the account. Thereafter, complainant asked Shri Bhupendra Pandey for payment but no payment was made by him. After about ten months, on 13.10.2021 the complainant met Shri Bhupendra Pandey and his brothers, near their residence near Gate No. 2 of Public Service Commission, Civil Lines, Prayagraj, but he was abused and threatened for life.

In this case, State Police has filed charge sheet against S/Shri Bhupendra Pandey, Arun Pandey and Arvind Pandey U/s 504 and 506 IPC on 05.11.2021. The incident had taken place and role of accused persons can be looked into during the course of trial by Ld. Trial Court.

(V) Case Crime No. 312/ 2022 dated 18.06.2022 U/s 323, 506, 406 IPC, Police Station Civil Lines, Prayagraj, (placed at serial no.6 in the preceding paragraph no.11).

Findings of State Police: The FIR no. 312/ 2022 was registered U/s 323, 506, 406 IPC at PS : Civil Lines, Prayagraj on the directions dated 14.06.2022 of Learned CJM, Allahabad passed in the Complaint no. 144/12/22 dated 06.05.2022 u/s 156(3) Cr.P.C. of Smt. Vinita Jaiswal. During investigation the State Police recorded statement of the complainant to the effect that she had arrived at a compromise with the accused and hence she does not want any further legal proceedings in the matter. Accordingly, Police has filed a Closure Report dated 29.10.2022 I the Court of Ld. Chief Judicial Magistrate, Allahabad which is still pending for consideration.

Enquiry has revealed that on the same facts of above said Case Crime No. 312/ 2022 of PS : Civil Lines, Prayagraj, Shri Bhupendra Kumar Pandey had filed a complaint u/s 156(3) Cr.P.C. against Shri Shatrughan Lal Jaiswal as well as his wife Smt. Vinita Jaiswal and his family members on which the following cross Case Crime No. 379/2022, P.S. Civil Lines, Prayagraj, has been registered.

(VI) Case Crime No. 379/2022 dated 14.07.2022 U/s 147, 452, 427, 392, 504, 506 IPC, Police Station Civil Lines, Prayagraj, (placed at serial no.10 in the preceding paragraph no.11).

Findings of State Police: Presently, this case is under investigation by State Police.

Findings of CBI: In respect of above mentioned two cases, enquiry has revealed that the EWS house at EH-49, Avantika Colony, Naini, Prayagraj was allotted by Allahabad Development Authority to Smt. Vinita Jaiswal and her husband. On 29.11.2019 Shri Bhupendra Kumar Pandey (Advocate) entered into an oral agreement with Smt. Vinita Jaiswal for reconstruction of the first and second floor of the said house for an amount of Rs. 10,30,000/- on the agreed terms and conditions of the construction. As per agreement, a sum of Rs. 10,30,000/- was paid by Smt. Vinita Jaiswal to Shri Bhupendra Pandey through cheque/ cash and construction of the house started. However, Shri Bhupendra Pandey left the construction incomplete and told Smt. Vinita Jaiswal that construction has been completed as per sum of Rs. 10,30,000/- received and further no construction will be done. Aggrieved, Smt. Vinita Jaiswal filed a Complaint no. 144/12/222 dated 06.05.2022 u/s 156(3) Cr.P.C. before Ld. CJM, Allahabad and on the directions dated 14.06.2022 of Learned CJM, Allahabad, FIR No. 312/2022 was registered U/s 323, 506, 406 of IPC at PS Civil Lines, Prayagraj on 18.06.2022.

Enquiry has revealed that on the same facts, Shri Bhupendra Kumar Pandey had filed a complaint u/s 156(3) Cr.P.C. on which the present FIR no/ 379/ 2022, PS Civil Lines, Prayagraj has been registered. It is a cross case of FIR No. 312/2022 of the same Police Station involving dispute between two parties. However, as discussed above, the FIR No. 312/2022 has been closed by the State Police citing compromise between the two parties and investigation of FIR No. 379/ 2022.

During present Enquiry, Smt. Vinita Jaiswal was examined and therein she stated contrary to the findings of State Police that she had not arrived at any compromise with Shri Bhupendra Kumar Pandey or his brothers. She further stated that her statement was not recorded by any officer/

official of State Police on the said matter. It is apparent that the State Police has not conducted proper investigation of the case.

(VII) Case Crime No. 243/2018 dated 18.05.2018 U/s 419, 420, 147, 323, 504, 506 IPC and Section 3(2)(V) and 3(2) (VI) SC/ST Act of Police Station Civil Lines, Prayagraj, (placed at serial no.8 in the preceding paragraph no.11).

Findings of State Police: In this case Police has filed chargesheet against Shri Krishna Kumar Patel, Smt. Arti Patel, Shri Chandrajit Singh and Shri Brijendra Singh on 02.08.2018 before the Ld. Court u/s 147, 323, 504 & 506 IPC and Section 3(2)(va) of SC/ST Act.

Findings of CBI: Findings of CBI: Enquiry has revealed that the property bearing Kothi No. 2/2, T.B. Sapru Road, Prayagraj measuring about 1 1/2 Beegha was in the name of Late Chhote Lal Patel and his younger brother Late Jang Bahadur Patel. Smt. Kusum Lata used to live in the house of Late Chhote Lal Patel for house hold works and also used to take care of Late Chhote Lal Patel. Shri Chhote Lal Patel had obliged Smt. Kusum Lata and willed about 1 biswaof the property bearing Kothi No. 2/2, T.B. Sapru Road, Prayagraj, to Smt. Kusum Lata through Sale Deed dated 15.03.2014 and possession of the same was with Smt. Kusum Lata.

Enquiry has also revealed that Smt. Arti Patel was the only child of Late Chhote Lal Patel. On 05.02.2018, Smt. Arti Patel executed a sale deed selling the above said 1 Biswa land (which was in the possession of Smt. Kusum Lata) to Shri Brijendra Singh and Shri Chandrajit Singh through registered Sale Deed. Shri Brijendra Singh and Shri Chandrajit Singh had taken possession of the said land.

Enquiry has revealed that on 12.04.2018 there was dispute for possession of the land between Smt. Kusum Lata and Shri Brijendra Singh & Shri Chandrajit Singh. Smt Arti Patel and her husband were not present at that time. However, Smt. Arti Patel & her husband Sri Krishan Kumar Patel along with Shri Brijendra Singh and Shri Chandrajit Singh were named as accused by Smt. Kusum Lata in the FIR lodged by her U/s 419, 420, 147, 323, 504, 506 IPC and Sec. 3 (2) (V) and 3 (2) (VI) SC/ST Act of Police Station: Civil Lines, Prayagraj.

Enquiry has revealed that State Police has filed chargesheet against Shri Krishna Kumar Patel, Smt. Arti Patel, Shri Chandrajit Singh and Shri Brijendra Singh on 02.08.2018 before the Ld. Court u/s 147, 323, 504 & 506 IPC and Sec. 3 (2) (va) of SC/ST Act. Nothing incriminating has surfaced during the course of enquiry to question these findings of State Police.

(VIII) Case Crime No. 558/2021 dated 29.06.2021 U/s 147, 447, 323, 504 I.P.C. and Sec. 3 (2) (V) SC/ST Act. of Police Station: Civil Lines, Prayagraj. (placed at serial no.9 in the preceding paragraph no.11).

Findings of State Police: In this case Police had filed chargesheet against Shri Vinod Shankar Tripathi on 29.03.2022.

Findings of CBI: Enquiry has revealed that Shri Vinod Shankar Tripathi and Smt. Kusum Lata were known to each other previously. Smt. Kusum Lata offered her own disputed residential plot No. 2/2/2R, Sapru Marg Cuil Line Prayagraj to Sri Vinod Shankar Tripathi for purchase. At that time Sri Vinod Shankar Tripathi and Shri Bhupendra Pandey were good friends and both agreed to jointly purchase this residential plot at No. 2/2/2R, Sapru Marg for Rs. 20 lacs. They entered into an agreement to sale dated 13.11.2018 with Smt. Kusum Lata and an advance of Rs. 50001/- was paid to her.

Enquiry has also revealed that Sri Bhupendra Pandey and Sri Vinod Shankar Tripathi mutually agreed by that the ground floor will be used for chambers/offices and parking space for both and the first and second floor will be used by them as residence. Accordingly construction was carried out on this plot by both collectively. After completion of construction Sri Bhupendra Pandey got the sale deed executed on 25.02.2020 for first floor and on the same day Smt. Kusum Lata executed a new agreement to sale with Sri Vinod Shankar Tripathi for second floor. Till then Sri Vinod Shankar Tripathi had paid Rs. 5.5 lacs to Smt. Kusum Lata and took some more time for making balance payment to her.

However, dispute arose between them with regard to the clearance of the respective dues. Some part of the property was occupied by Shri Bhupendra Kumar Pandey and later Sri Vinod Shankar Tripathi occupied the other part of the property which was lying vacant. This was not to the liking of Sri Bhupendra Kumar Pandey who felt that he had born the cost of construction of the property himself without fully receiving the consideration from Sri Vinod Shanker Tripathi, Enquiry has further revealed that in November 2020, when Shri Vinod Shankar Tripathi asked Smt. Kusum Lata for registration of sale deed for second floor of above mentioned property. She asked him to first clear the dues of Shri Bhupendra Pandey, which were incurred on construction of house.

Enquiry has revealed that since the sale consideration was not fully paid by Shri Vinod Shankar Tripathi to the vendor Smt. Kusum Lata but the former took the property in his possession, Smt. Kusum Lata lodged FIR No. 558 of 2021 at PS- Civil Lines, Prayagraj U/s 147, 447, 323, 504 IPC and 3(2)(v) SC & ST Act against Shri Vinod Shankar Tripathi and his family members on 29.06.2021 for criminal trespass and forcible occupation. In this case, charge-sheet has been filed against Shri Vinod Shankar Tripathi, Advocate in the Competent Court which is under trial. As per Shri Vinod Shankar Tripathi, Advocate, he tried to settle the issue amicably a number of times but due to the intervention of Shri Bhupendra Kumar Pandey, Advocate, the matter could not be resolved either with Smt. Kusum Lata or Shri Bhupendra Kumar Pandey.

(IX) Case Crime No. 289 /2022 dated 05.06.2022 U/s 386 and 506 IPC Police Station: Civil Lines, Prayagraj (placed at serial no.11 in the preceding paragraph no.11).

Findings of State Police: After completion of the investigation, the State Police filed chargesheet against Shri Mukhtar Ahmad, Miss. Khushboo and Smt. Reshma on 26.11.2022 before the concerned Court.

Findings of CBI: Enquiry revealed that complainant Smt. Rupali Singh Adhikari resides in Shailabh Height Apartment and accused persons used to work as her domestic servants for last 7-8 years. During investigation, the State Police had recovered Rs 1,00,000/- from accused persons and State Police has filed chargesheet against Shri Mukhtar Ahmad, Miss Khushboo and Smt. Reshma on 26.11.2022. The incident appears to be genuine.

(X) Case Crime No. 114 / 2022 dated 21.04.2022 U/s 147, 148, 149, 323, 504, 506, 307 IPC, Police Station: Phaphamau, Prayagraj (placed at serial no.12 in the preceding paragraph no.11).

Findings of State Police: Investigation by State Police established that the alleged incident was false and a closure report dated 05.06.2022 was filed in this matter.

Findings of CBI: During enquiry Shri Bhupendra Kumar Pandey has stated that between 3.00 pm to 4.00 pm, he met with an accident on 16.06.2021 at Gohari More, Phaphamau, Prayagraj when his motorcycle was hit by a red car driven by Shri Vinod Shankar Tripathi, his father Shri Vijay Shankar Tripathi and some unknown persons. When he fell down both Shri Vinod Shankar Tripathi and Shri Vijay Shankar Tripathi fired bullets at him. Luckily the bullets did not hit him.

Enquiry has revealed that on 16.06.2021 Shri Bhupendra Kumar Pandey received first aid at 3.35 pm at Community Health Centre, Chaka, Naini, Prayagraj reportedly after a Road Side Accident. He was referred to SRN Hospital, Prayagraj. However, at 5.30 pm on 16.06.2021 he was admitted and took treatment at Priti Nursing and Maternity Home, George Town, Prayagraj. He was relieved from the hospital on 20.06.2021.

Enquiry has also revealed that FIR on the incident was registered on the complaint of Shri Bhupendra Kumar Pandey on 21.04.2022.

Enquiry has revealed that the reported site of accident at Gohari More, Phaphamau, Prayagraj was about 35 Km from Community Health Centre, Chaka, Naini, Prayagraj and Priti Nursing and Maternity Home, George Town, Prayagraj lies in between about 25 Km from Community Health Centre (CHC), Chaka.

The CDR analysis of mobiles of Shri Vinod Shankar Tripathi & his father Shri Vijay Shankar Tripathi has revealed that between 3.00 P.M. 4.00 P.M. on 16.06.2021, their locations were as under:

i. Shri Vijay Shankar Tripathi (Mob no. 9935341097) was mostly located in the vicinity of Krishna Dev Chaurasiya Arazi No.- 394 to 397, Mauza- Mahdauri Uparhar, Teliarganj, Rasulabad, Prayagraj. However, his location was not available during the period between 3.00 P.M. 4.00 P.M. on 16.06.2021.

ii. Shri Vinod Shankar Tripathi (Mob No. 8787272838 & 9956487136), for the time period between 3.00 P.M. 4.00 P.M. on 16.06.2021, he was located in the vicinity of (a) A-189, Mahdauri Colony, Teliarganj, Prayagraj (b) Arazi No. 394 to 397, Mauza- Mahdauri. Uparhar, Teliarganj, Rasulabad, Prayagraj.

The location of Shri Vinod Shankar Tripathi was about 9.0 Km from the reported point of accident. Hence, the allegation of Shri Bhupendra Kumar Pandey that both Shri Vinod Shankar Pandey and Shri Vijay Shankar Pandey were instrumental in causing his accident at Gohari More, Phaphamau, Prayagraj does not appear to be true.

Enquiry has also revealed that on 16.06.2021, Shri Bhupendra Kumar Pandey was using mobile number 9792866999. Scrutiny of the CDR of this number has revealed that at 12.40.57 hrs on 16.06.2021, he was near his residence at Stanley Road, Civil Lines, Prayagraj. Thereafter, he moved towards Dandi, Prayagraj and remained stationed in that area till 07.26.59 P.M.. The CHC (Community Health Centre). Chaka is located in that area. Thereafter, he moved to George Town area in the vicinity of Priti Nursing & Maternity Hospital, Georgetown.

On the basis of the medical records of CHC, Chaka, Prayagraj. Priti Nursing & Maternity Hospital, Georgetown and CDR of the mobile No. 9792866999 of Shri Bhupendra Kumar Pandey, it is clear that he must have met with road accident in Dandi / Chaka area only and was given first aid at CHC, Chaka. Thereafter, he was admitted at Priti Nursing & Maternity Hospital, Georgetown where he remained admitted till 20.06.2021. Scrutiny of CDR has also revealed that on 16.06.2021 Shri Bhupendra Kumar Pandey never visited the Gohari Road, Phaphamau which is more than 12 kms from his residence in a direction diagonally opposite to Chaka/Dandi, Prayagraj.

Thus, it appears that no such firing accident had taken place at Gohari Road, Phaphamau, Prayagraj on 16.06.2021 and the FIR was lodged on the basis of false facts.

(XI). Case Crime No. 424/ 2022 dated 04.08.2022 U/s 420 IPC, Police Station: Civil Lines, Prayagraj (placed at serial no.13 in the preceding paragraph no.11) Findings of State Police: Despite lodging the FIR, the complainant Shri Bhupendra Kumar Pandey did not provide the alleged forged document / Court order. This case is still under investigation at the initial level, by the State Police.

Findings of CBI: During enquiry it was revealed that the complainant Shri Bhupendra Kumar Pandey did not provide the alleged forged document / Court order to the conducting IO of the State Police. He also failed to provide the said document in this enquiry despite being aware about the fact that this enquiry was being conducted on the directions of the Hon'ble High Court to ascertain the veracity of the facts. In view of the above, it is apparent that the present FIR lodged by Shri Bhupendra Kumar Pandey is due to his animosity with Shri Vinod Shankar Tripathi and the same does not appear to be based on genuine facts.

(XII) Case Crime No. 447/2022 dated 31.08.2022 U/s 147, 148, 149, 323, 504, 506, 395, 34 IPC, Police Station: Colonelganj, Prayagraj (placed at serial no.14 in the preceding paragraph no.11).

Findings of State Police: The case is presently under investigation.

Findings of CBI: Enquiry revealed that on 31.08.2022 at about 02:00 PM during lunch hour, Shri Bhupendra Pandey abused Shri Prabhat Mishra that since the CBI is conducting enquiry, they are not happy and were not feeling well. On this issue, Shri Bhupendra Pandey was asked by Shri Prabhat Mishra why he was abusing in that way. On this Shri Bhupendra Pandey, his munshi Shri Wasim and 2-3 unknown persons started beating Shri Prabhat Mishra. Shri Prabhat was saved by the other Advocates of the District Court. In this regard, Case Crime No. 446/2022 U/s 147, 323, 504, 506 IPC against Shri Bhupendra Pandey and 04 unknown persons were got registered.

During enquiry, Call Detail Records (CDRs) of mobile phones of the FIR named accused persons were obtained and it was revealed that three of them namely Shri Ramesh Chandra Ojha, Advocate, Shri Ajay Kumar Mishra, Advocate & Shri Vinod Shankar Tripathi, Advocate were not present in the vicinity of scene of crime at the time of alleged incident on 31.08.2022 in the District Court (Kuchahri), Allahabad.

Enquiry revealed that instant Case Crime No. 447 / 2022 dated 31.08.2022 U/s 147, 148, 149, 323, 504, 506, 395, 34 IPC was got registered by Shri Bhupendra Pandey at Police Station: Colonelganj. Prayagraj as a cross FIR of Case Crime No. 446/2022 U/s 147, 323, 504, 506 IPC against Shri Bhupendra Pandey and 04 unknown persons. He also named Advocates in the FIR on the basis of false facts in order to take revenge from the Advocates who are connected with the person with whom Shri Bhupendra Pandey had dispute. Both these cases are still under investigation.

(XIII) Case Crime No. 361/2021 dated 23.10.2021 U/s 279 and 304A of IPC, Police Station: Cantt., Prayagraj (placed at serial no.15 in the preceding paragraph no.11) Findings of State Police: During investigation, the State Police could not identify the vehicle causing accident and filed Closure Report No. 113/2022 dated 17.04.2022 before the Court of Ld. ACJM-17, Allahabad.

Findings of CBI: Enquiry revealed that Smt. Raisa Bano, Khala (Mausi) of Shri Mohd. Harun used to live with him and on the day of incident i.e., 22.10.2021, she had left for the office of Shri Salim Shervani seeking some financial help. Shri Salim Shervani was a known person of the area extending help to the poor. When she did not return by late night, the complainant thought that she might had gone to her home situated at Phaphamau and contacted her neighbours at Phaphamau who informed him that two Police personnel had visited her house and informed that his mausi had met with an accident. When complainant reached the Police Station- Cantt, he came to know that his mausi had expired in the road accident.

Shri Harun subsequently visited the place of accident and tried to identify the vehicle which had hit his Khala (Mausi). After 5-6 days, the complainant again visited PS- Cantt. Where he was informed by IO of the case that as per CCTV footage his Khala (Mausi) was hit by a motorcycle ridden by an Advocate aged about 40-42 years.

Thereafter, Mohd. Harun contacted Shri Arun Kumar Srivastava. Advocate and informed him about the circumstances. After about 2- 2% months, Shri Arun Srivastava contacted Harun and told him to

go to the place of incidence where some person might inform about the registration number of vehicle which caused the accident. When he visited at the place of accident, a person riding a scooter came and gave him a piece of paper mentioning the vehicle number of the vehicle which hit his Khala (Mausi). Thereafter, with the help of Shri Arun Kumar Srivastava, Advocate he submitted an application mentioning the vehicle number to the SSP, Prayagraj and also made an application for claim before the Learned Court.

During enquiry, Shri Mohd Harun has submitted that registration details of the vehicle UP 70 CE 8529 was submitted by him on 05.01.2022 to the SSP, Prayagraj. This motorcycle was registered in the name of Shri Vibhav Shankar Tripathi, brother of Shri Vinod Shankar Tripathi, Advocate.

Enquiry has also revealed that the Case Diaries do not mention time of the incident on 22.10.2021. On the basis of the statement of witnesses it is apparent that the accident had taken place in the afternoon of 22.10.2021.

During enquiry CDR of mobile number 9839422649 of Shri Mohd. Harun has revealed on 04.01.2022 he was contacted by Shri Bhupendra Pandey (Mob No. 9792866999) and the call lasted for 274 seconds. Thereafter, there were calls between Shri Mohd. Harun & his advocate Shri Arun Kumar Srivastava & also between Shri Arun Kumar Srivastava and Bhupendra Kumar Pandey. Shri Mohd Harun has stated that on 04.01.2022 he received details of the vehicle used in the hit and run case involving his khala and the same were filed by him with Sr. SP Prayagraj on 05.01.2022. There was no previous contact between Shri Mohd Harun and Shri Bhupendra Kumar Pandey.

The scrutiny of the CDRs could not confirm locations of the family members of Shri Vinod Shankar Tripathi to be in the vicinity of the point of accident on 22.10.2021. It is relevant here that on 04.01.2022, Shri Mohd Harun was contacted by Shri Bhupendra Kumar Pandey and on 05.01.2022 he had submitted the motorcycle number of Shri Vibhav Shankar Tripathi, brother of Shri Vinod Shankar Tripathi to the Police alleging that the said Motorcycle was used in the hit and run case on 22.10.2021.

In view of the above it is clear that an accident had taken place in which the lady had expired. However, it is also apparent that due to his animosity with Shri Vinod Shankar Tripathi, Shri Bhupendra Kumar Pandey had provided the registration number of the motorcycle of Shri Vibhav Tripathi.

(XIV) Case Crime No. 239/2012 dated 20.07.2012 U/s 376, 354, 504, 5061PC of Police Station: Mauamia, Allahabad (placed at serial no.16 in the preceding paragraph no.11) Findings of State Police: In compliance with the orders of Ld. Special Judicial Magistrate, Allahabad on the application U/s 156 (3), Cr.PC filed by Smt. Samla Giri, the State Police had registered FIR bearing Case Crime No. 239/2012 dated 20.07.2012 U/s 376, 354, 504, 506 IPC of PS: Mauamia, Allahabad. After investigation of case State Police has filed closure report on 22.07.2012.

Findings of CBI: Enquiry revealed that Smt. Samla Giri was earlier married to Shri Ram Sevak Giri. Due to their difference Ram Sevak Giri sold his agriculture land to one Shri Rajesh Patel, Advocate

and left the village. Smt. Samla Giri, left by her husband, remained in the village and refused to hand over the possession of the agriculture land to Shri Rajesh Patel. Efforts made by Shri Rajesh Patel to obtain possession of the land purchased by him were apparently resisted by Smt. Samla Giri who filed the present FIR alleging various offences against him including her rape. Enquiry has also revealed that Smt. Samla Giri had earlier filed complaint with the PS- Mau Aima on similar allegation. However, as no case was registered on her complaint, she filed Complaint U/s 156 (3) Cr.PC on which directions were issued and the present case was registered. Further, investigation by Local Police established that this FIR has been registered by Smt. Samla Giri only to create pressure on Shri Rajesh Patel to desist him from taking possession of her land. With these findings, the Local Police had closed the case recommending action against her U/s 182/211 IPC. Nothing incriminating has surfaced during the course of enquiry to question these findings of State Police.

(XV). Case Crime No. 181 / 2018 dated 16.04.2018 U/s 323 and 354B IPC and of Police Station: MauAima, Prayagraj (placed at serial no.17 in the preceding paragraph no.11) Findings of State Police: Police has filed charge sheet against Shri Chandra Babu Naidu and Shri Kushlesh s/o Bhai Lal u/s 323, 325 and 354-kh IPC.

Findings of CBI: Enquiry revealed that accused Shri Chandra Babu Naidu had kept his sand and bricks on the Gram Samaj land situated in front of agricultural field of Smt. Samla Giri. On the day of incidence Shri Chandra Babu Naidu received telephonic call from Shri Om Prakash that someone was loading the said sand and bricks on a tractor. Thereafter, he approached at the site and saw that Shri Rajendra Patel @ Govardhan was standing there alongwith his tractor and trolley. Seeing Shri Chandra Babu Naidu, Shri Rajendra Patel @ Govardhan reached on the road alongwith tractor and came towards Shri Chandra Babu Naidu and took the keys of his motorcycle. In the meantime Smt. Samla Giri alongwith her daughter reached there and took the key of motorcycle with her. This led to altercation & exchange of blows between Shri Chandra Babu Naidu and Smt. Samla Giri. Thereafter, the instant case was got registered by Smt. Samla Giri.

In view of the above it appears that the incident had taken place. The facts of the case can be appropriately appreciated during the course of trial.

(XVI) Case Crime No. 105/2022 u/s 376-D, 328, 506 I.P.C. & sec 5/6 of POCSO Act of Police Station: Mau Aima, Prayagraj (placed at serial no.18 in the preceding paragraph no.11) Enquiry has also revealed that the modification application of Shri Vinod Shankar Tripathi has mentioned the case filed by Smt. Samla Giri against Shri Vinod Shankar Tripathi, his father & others as Case Crime No. 105/2022 U/s 376-D, 328, 506 IPC and Section 5 /6 of POCSO Act of PS Mau Aima when in fact, it registered at Police Station Daraganj in Case Crime No. 105/2022, details of the enquiry in respect of the same are as under:

Case Crime No. 105/2022 dated 10.03.2022 U/s 376-D, 328, 506 I.P.C. 5/6 of POCSO Act of Police Station: Daraganj, Prayagraj. (placed at serial no.18 in the preceding paragraph no.11) Findings of State Police State:- Police has filed Closure Report on 29.07.2022. Proceedings U/s 182 IPC were initiated against complainant.

Findings of CBI: Enquiry revealed that Shri Vinod Shankar Tripathi and his father were arraigned as accused on 15.05.2022 in FIR No. 105/2022, Police Station: Daraganj filed by Smt. Samla Giri alleging gang rape of her daughter Miss Sweta Girion 08.05.2022 at about 07:30 PM. Investigation by the State Police established that no such incident had taken place. In fact, the victim, daughter of Smt. Samla Giri in her statement u/s 164 Cr.PC stated that no such incident had taken place and the FIR was got registered on the directions of her mother. The CDR locations of Mobile numbers of accused S/Shri Vinod Shankar Tripathi, Brijesh, Rajesh Shukla, Sudhakar Mishra and Vijay Shankar Tripathi were collected by the State Police during investigation which reflected that at the time of incident, the accused persons were not present at the scene of crime. Shri Vinod Shankar Tripathi has alleged that Smt. Samla Giri is an associate of Shri Bhupender Kumar Pandey, Advocate and this FIR was lodged by her at his behest only. Enquiry revealed that during that period Smt. Samla Giri was a client of Advocate Bhupendra Kumar Pandey and on 10.03.2022, for registration of the above FIR, Miss Sweta Giri & her mother, Smt. Samla Giri were accompanied by Mohd. Wasim (Munshi of Shri Bhupendra Pandey, Advocate). Shri Bhupendra Pandey had also sent an Advocate at Police Station Daraganj, Prayagraj to help Smt. Samla Giri in registration of FIR.

Enquiry has further revealed that State Police has filed Closure Report in this case on 29.07.2022. Proceedings U/s 182 IPC have also been initiated against complainant, Smt. Samla Giri. Nothing incriminating has surfaced during the course of enquiry to question these findings of State Police.

(XVII) Complaint Case No. 908/2022 U/s 138 NI Act filed before the Court of Ld. Judicial Magistrate Court No-04, Allahabad. (placed at serial no.19 in the preceding paragraph no.11) (XVIII). Complaint Case No. 885 / 2022 U/s 138 NI Act before the Court of Ld. Judicial Magistrate- Court No-04, Allahabad. (placed at serial no.20 in the preceding paragraph no.11) (I) In the aforesaid Complaint Cases No. 908 of 2022 and 885 of 2022 pertains to Section 138 of Negotiable Instruments Act the complainant is Ayana Bose whereas, the accused is Bhupendra Kumar Pandey and findings recorded by the C.B.I. in respect of both the cases as under:-

Findings of CBI: Enquiry has revealed that during Feb-Aug 2017, Smt. Ayana Bose Chatterjee had lent an amount of Rs 28,21,800/- through cheques / RTGS to Shri Bhupendra Kumar Pandey on interest. Enquiry revealed that subsequently Shri Bhupendra Kumar Pandey failed to return the amount to Smt. Ayana Bose Chatterjee. thereafter, on 25.06.2021, she lodged a complaint at PS- Civil Lines, Prayagraj for registration of case against Shri Bhupendra Kumar Pandey later on, i.e. 01.07.2021, Shri Bhupendra Kumar Pandey agreed to return money and issued 18 post-dated cheques total amounting to Rs. 22,29,000/- to Smt. Ayana Bose Chatterjee. These cheques were dated for the period from Aug 2021 to November 2022. However, only two of these cheques amounting to Rs. 1.5 lacs were cleared and the remaining cheques were dishonoured when she presented the same in the Bank

Smt. Ayana Bose Chatterjee had filed the above mentioned two complaint cases u/s 138 NI Act against Shri Bhupendra Kumar Pandey in the Court of Learned Additional Chief Judicial Magistrate, Allahabad.

Enquiry has revealed that in the above matter, the Complaint Case of Smt Ayana Bose under NI Act was bearing No. 1308/2022 which has been incorrectly mentioned as No.908/2022.

Both these cases are genuine complaint cases filed u/s 138 NI Act by Smt. Ayana Bose before the Ld. ACJM-04, Allahabad against Shri Bhupendra Kumar Pandey (Advocate). Both these complaints are still pending in the Court.

(XIX). Complaint Case No. 125 of 2022 under Sections 354 & 452 I.P.C. and Section 3 (2) (V) SC/ST Act filed before the Court of Ld. Special Judicial Magistrate, SC/ST Act, Allahabad. (placed at serial no.21 in the preceding paragraph no.11) Findings of State Police and present status of the case: The complaint is still pending before the concerned Court below.

Findings of CBI: Enquiry has revealed that on 21.06.2021 Shri Vinod Shankar Tripathi was using mobile no. 8787272838 and from 19:47:31 to 23:47:14 he was located in Daraganj area, Prayagraj (Long 25.445, Lat 81.8815) which was about 9 Kms away from the residence of Smt. Kusum Lata at Rajapur, Prayagraj. Hence, it is highly improbable that Shri Vinod Shankar Tripathi could have gone to her house at 11.30 pm. Enquiry has revealed that the complaint was filed by Smt. Kusum Lata on 22.04.2022 through Shri Bhupendra Kumar Pandey. Advocate who has a running dispute with Shri Vinod Shankar Tripathi over a property jointly purchased by them from Smt. Kusum Lata. As a result of this dispute, Smt. Kusum Lata had lodged another FIR No. 558/2021 dated 29.06.2021 under Sections 147, 447, 323, 504 I.P.C. and Sec. 3(2)(V) SC/ST Act against Shri Vinod Shankar Tripathi, his wife Smt. Priti Tripathi, his father Shri Vijay Shankar Tripathi, his brother Shri Sandeep Tripathi & 22-25 unknown advocates for forcibly taking possession of her house at Civil Lines on 25.6.2021. It has also revealed that Shri Vinod Shankar Tripathi has already filed a Civil Suit for the purpose of giving outstanding amount of the sale consideration of said property to Smt. Kusum Lata. Enquiry has also revealed that on 21.04.2022 Shri Bhupendra Kumar Pandey, Advocate himself had lodged FIR No. 114/2022 U/s 147, 148, 149, 323, 504, 506, 307 IPC, Police Station- Phaphamau, Prayagraj against Shri Vinod Shankar Tripathi & his father Shri Vijay Shankar Tripathi. As discussed above, the said case was not based on genuine facts.

In view of the above, it is apparent that the allegation on Shri Vinod Shankar Tripathi alongwith his brother and father for visiting the residence of the complainant and threatening her does not appear to be genuine.

(XX). Complaint Case No. 06 of 2020 U/s 323, 504, 506 and 376-D IPC of Police Station: Mau Aima, Prayagraj: (placed at serial no.22 in the preceding paragraph no.11) Findings of State Police: Smt. Samla Giri submitted complaint through IGRS against S/Shri Ram Sajivan Patel, Radhey Shyam S/o Ram Raj, Rajesh Kumar Shukla at PS- Mau Aima, Prayagraj alleging therein her rape,

beating, abusing and threatening by the persons named in the complaint. The complaint was examined by CO- Soraon, Prayagraj and the incident was found to be false and the complaint was closed.

Findings of CBI: Enquiry revealed that Smt. Samla Giri was earlier married to Shri Ram Sevak Giri but later she came in contact with Shri Goverdhan Patel and started residing with him. Thereafter, Ram Sevak Giri sold his parental land to one Shri Rajesh Patel, Advocate of Pratapgarh but the possession of the land/house was still with Samla Giri. When Rajesh Patel came to take the possession of the land there was an altercation between Shri Rajesh Patel and Smt. Samla Giri. In the meantime, Kamlesh Kumar who was playing cricket nearby with 20-25 boys, saw that Smt. Samla Giri and her supporters damaged the vehicles of Rajesh Patel and started beating him. Thereafter, Shri Kamlesh Kumar and others reached there and tried to pacify the situation. They helped Shri Rajesh Patel (opponent of Smt. Samla Giri in land dispute) for loading the damaged vehicles on the Pickup, on this Smt. Samla Giri got angry and threatened them to lodge a criminal case against them.

Smt. Samla Giri submitted complaint through IGRS against Sri Ram Sajivan Patel, Radhey Shyam S/o Ram Raj, Rajesh Kumar Shukla at PS- Mau Aima, Prayagraj alleging therein her rape, beating, abusing and threatening by the persons named in the complaint. The complaint was examined by Circle Officer Soraon, Prayagraj who found the incident false and closed the complaint. Thereafter, Smt. Samla Girihad filed application u/s 156 (3) Cr.PC before the concerned Court which is pending. Nothing incriminating has surfaced during the course of enquiry to question these findings of State Police.

(XXI). Complaint Case No. 17145 of 2022 filed by Shubham Giri @ Sonu S/o Smt. Samla Giri: (placed at serial no.23 in the preceding paragraph no.11) Findings of CBI: Enquiry has further revealed that on the complaint of Shri Shubham Giri, an order dated 23.08.2022 passed by of the Ld. Court of Special Chief Judicial Magistrate, Allahabad for enquiry into the matter. The matter was enquired by Circle Officer, Soraon, Prayagraj who found that earlier, on the complaint of Smt. Archana Singh, an FIR No. 90/2021 dated 01.03.2021 U/s 342, 376-D, 506 IPC was registered at PS- Mau Aima, Prayagraj against Smt. Samla Giri and others and after investigation accused persons including Smt. Samla Giri and 03 others were chargesheeted. It was concluded by the State Police that the present complaint has been filed before the Ld. Court by Shri Shubham Giri for saving himself. On the findings of CO, Soraon, Prayagraj, the Court of Ld. Special Chief Judicial Magistrate, Allahabad vide order dated 28.09.2022 rejected the complaint of Shri Shubham Giri with the observation that if a false complaint is received by the Police, then proceedings U/s 182 IPC be initiated by the State Police against the complainant.

The complaint has already been dismissed with the orders of learned Special Chief Judicial Magistrate , Allahabad, which appear to be just and proper.

25. That so far as Case Crime No. 144 of 2022 under Section 376 (D), 328 I.P.C. Police Station Phaphmau, District Prayagraj is concerned, a detailed preliminary enquiry has already been submitted by the C.B.I. vide PE No. 0532022S0001 which has already been taken note of in

paragraph 23 (II).

26. This Court vide order 20.10.2022 had also directed the C.B.I. to conduct preliminary enquiry with respect to Case Crime No. 599 of 2016 under Sections 147, 148, 149, 376, 354, 397, 452, 427, 504, 506 I.P.C. registered at Police Station Sarai Inayat, District Prayagraj as stated in preceding paragraph no.13, pursuant to which, C.B.I. in its preliminary enquiry 0532022 S0002 had submitted the report in the following terms:-

Findings of State Police: The alleged incident was found to be false and IO filed the closure report dated 01.03.2017 in this matter.

Findings of CBI: Enquiry revealed that there was property dispute between Shri Ram Siromani Mishra and Shri Ashish Jaiswal. The present case is a cross case of FIR No. 365/2016 U/s 307, 394, 504, 506 IPC of PS- Sarai Inayat, Prayagraj registered on the complaint of Shri Abhishek Jaiswal alleging therein that Shri Ram Siromani Mishra and his two sons Shri Vivek Mishra and Shri Vikas Mishra had badly beaten Shri Ashish Jaiswal @ Saritend Jaiswal and his friend Shri Nitin Kesarwani on 13.09.2016 at about 04:25 PM on the way to Village- Fatuha. In furtherance of investigation of the said case, medical examination of Shri Ashish Jaiswal was conducted between 05.50 pm to 6.15pm on 13.09.2016 at Community/ Primary Health Centre Kotawan (Bani), Allahabad. Thereafter, he was admitted at TB Sapru Hospital, Prayagraj. In this case after conclusion of investigation the State Police has filed chargesheet U/s 308, 504, 506 IPC against Shri Ram Shiromani Mishra and Shri Vivek Mishra.

Enquiry has also revealed that subsequently Miss Babita D/o Shri Ram Shiromani Mishra approached PS- Sarai Inayat, Prayagraj by way of a complaint dated 14.09.2016 alleging therein that on 13.09.2016 at about 06.00 pm when she had gone to the field on natural call, Shri Ashish Jaiswal and Shri Nitin Kesarwani tried to molest her. This was contrary to the fact that as at that time Shri Ashish Jaiswal was admitted at TB Sapru Hospital, Prayagraj due to the injuries caused by Ram Shiromani Mishra and his sons on 13.09.2016 and remained under treatment for 10-12 days there. As the local Police was aware about the incident of 13.09.2016, no FIR was registered by PS- Sarai Inayat, Prayagraj.

Enquiry further revealed that subsequently, on 28.09.2016 Smt. Santosh Mishra w/o Shri Ram Shiromani Mishra filed an application u/s 156 (3) Cr.PC before Ld ACJM (9), Allahabad alleging therein her rape, theft and molestation of her daughter on 13.09.2016 at about 12.00 noon by Shri Ashish Jaiswal & others. On the order dated 26.11.2016 of the Ld ACJM, Case Crime No. 599 of 2016 was registered on 23.12.2016 at PS- Sarai Inayat, Prayagraj.

From the above it is observed that while in the complaint filed by Miss Babita on 14.09.2016, she had alleged that on 13.09.2016 at 6.00 pm, Shri Ashish Jaiswal and Shri Nitin Kesarwani tried to molest her but in the complaint dated 28.09.2016, Smt.

Santosh Mishra (mother of Miss Babita) had alleged her rape, theft and molestation of her daughter (Miss Babita) on 13.09.2016. It is, therefore, clear that the alleged incident had not taken place and the State Police has rightly filed the closure report in this matter.

27. This Court vide order dated 13.02.2023 had directed the C.B.I. to conduct the preliminary enquiry on the intervener/impleadment applications (as has been stated in preceding paragraph nos. 14, 15, 16, 17, 18), with respect to the following cases:-

(I) Case Crime No. 224 of 2022 under Sections 147, 323, 504, 506, 452, 354Kha, Police Station Sarai Inayat, District Prayagraj.

(II) Case Crime No. 255 of 2022 under Sections 307, 504, 506, I.P.C. Case Crime No. 244 of 2021 under Sections 147, 323, 504, 506, 452, 354B I.P.C. Police Station Sarai Inayat, District Prayagraj.

(III) Case Crime No. 90 of 2022 under Sections 494, 504, 506 I.P.C. Police Station Industrial Area, District Prayagraj.

(IV) Case Crime No. 91 of 2020 under Sections 354Kh, 147, 148, 323, 308, 427, 452, 504, 506 I.P.C. Police Station Hanumanganj, District Kushinagar.

(V) Criminal Complaint Case No. 429 of 2019 (old no. 180 of 2019) Police Station Kotwali Hata, District Kushi Nagar.

(VI) Criminal Complaint Case No. 13615 of 2020 (Old Case No. 801 of 2020) under Sections 323, 504, 506, 427 I.P.C. Police Station Hanumanganj, District Kushinagar.

(VII) Case Crime No. 195 of 2020 under Sections 376D, 406, 342, 506 I.P.C. Police Station Kareilly, District Prayagraj.

(VIII) Case Crime No. 141 of 2020 under Sections 468, 467, 420, 419, 406 I.P.C. Police Station Kydganj, District Prayagraj.

28. Pursuant to the order dated 13.02.2023, the C.B.I. had submitted Enquiry Report being PE 0532023 S0001 with regard to the aforesaid cases and the outcome of the preliminary enquiry of the aforesaid cases are as under:

(I) Case Crime No. 224 of 2022 under Sections 147, 323, 504, 506, 452, 354Kha I.P.C. Police Station Sarai Inayat, District Prayagraj.

Findings of State Police: After completion of investigation, State Police forwarded chargesheet No. 70/22 dated 27.04.2022 against S/Shri Padamdhar Dwivedi, Alokdhar Dwivedi, Anuragdhar Dwivedi, Ashutosh Ojha, Ramesh Ojha U/s 147, 323, 504, 452 and 506 IPC Findings of CBI:

Enquiry has revealed that Late Premdhar Dwivedi and Late Laxmidhar Dwivedi were two brothers living jointly. Late Laxmidhar Dwivedi expired in the year 1973 and his 4 sons were looked after by Late Premdhar Dwivedi. Late Premdhar Dwivedi was having only one son namely, Shri Padamdhar Dwivedi. Shri Padamdhar Dwivedi after his marriage got 32 Bighas agricultural land & other properties from his in-laws at Puremaharath, Phoolpur, Prayagraj and after some time he started residing with his in-laws at their home.

Enquiry has further revealed that Late Premdhar Dwivedi, a pensioner, was being looked after/served by his nephews. Shri Premdhar Dwivedi settled the issues of his property by giving agricultural lands including residential property to his nephews and commercial land measuring about 2.5 bighas and 10 shops in favour of his son Shri Padamdhar Dwivedi.

Enquiry has revealed that Late Premdhar Dwivedi expired on 14.06.2021. In his last stage he was not allowed by his nephews to meet his son Shri Padamdhar Dwivedi or grandsons. In the meantime, Will / Gift Deed was executed by Late Premdhar Dwivedi in favour of his nephews. Shri Padamdhar Dwivedi S/o Late Premdhar Dwivedi and his sons usually used to visit to meet his father/grandfather but they were not allowed by his cousins to meet his father and used to quarrel with them.

Enquiry has further revealed that Shri Padamdhar Dwivedi S/o Late Premdhar Dwivedi had submitted an application dated 11.06.2021 to the Sr. SP. Prayagraj that his father be allowed to stay at his residence at Phoolpur or at his residence at Sahson, Prayagraj and he may also be allowed to meet and take care of him.

On 13.06.2021, S/Shri Padamdhar Dwivedi, Alokdhhar Dwivedi, Anuragdhhar Dwivedi (both S/o Shri Padamdhar Dwivedi) & his relatives, namely, Ramesh Ojha, Advocate, Ashutosh Ojha, Advocate, Siyaram Tiwari (maternal uncle) visited PS- Sarai Inayat, Prayagraj and requested about above application and informed about directions of the CO, Phoolpur, Prayagraj. Then SHO Sarai Inayat, Prayagraj told them to visit Police Chowki, Sahso to take the assistance of police personnel. Shri Padamdhar Dwivedi visited his village alongwith the Police personnel and relatives but the gate was not opened by his cousin. After some time when the gate was opened, a fight took place between the two parties. Persons from both the parties have stated that Advocate Ramesh Ojha and Ashutosh Ojha did not take part in the fight and were standing far from the place of incident. In this incident Shri Padamdhar Dwivedi, his son and Shri Siya Ram Tiwari were beaten by Shri Shashankdhar Dwivedi and his family members and they got injuries. Shri Padamdhar Dwivedi went to the Police Station- Sarai Inayat and submitted complaint regarding the incident and FIR bearing No. 223 of 2021 U/s 147, 323, 504, 506 and 342 IPC on 13.06.2021 at PS: Sarai Inayat, Prayagraj against S/Shri Dharnidhar Dwivedi, Chandradhar Dwivedi, Shyamdhhar Dwivedi, all S/o Shri Late Laxmidhar Dwivedi, Sudhanshudhar Dwivedi, Shashankdhar Dwivedi, both S/o Shri Dharnidhar Dwivedi, Abhishekdhhar Dwivedi, Shubhamdhhar Dwivedi, both S/o Shri Rajdhar Dwivedi, Kushaldhar Dwivedi S/o Shri Shyam Dhar Dwivedi, all R/o Sahson, PS- Sarai Inayat, Prayagraj was registered.

Enquiry has also revealed that on 14.06.2021, in the same matter, a cross FIR bearing Case Crime No. 0224/2021 U/s 147, 323, 504, 506, 452, 354 (kh) of IPC was got registered by Shri

Shashankdhar Dwivedi. However, during enquiry Smt. Shrishti Dwivedi W/o Shri Sudhandhudhar Dwivedi and sister-in-law (Bhabhi) of Shri Shashankdhar Dwivedi, Advocate (complainant) as well as other witnesses have denied any type of outrage of her modesty by FIR named accused persons. This fact mentioned in the FIR is totally false. It is further revealed that Shri Padamdhar Dwivedi and other had not entered the house of complainant on 13.06.2021. All the incident took place at the gate of house of Shri Shashankdhar Dwivedi.

Enquiry further revealed that on 14.06.2021 in the morning Shri Premdhar Dwivedi, father of Shri Padamdhar Dwivedi expired.

On the basis of above facts, it appears that Shri Shashankdhar Dwivedi and his family members were the aggressors but got an FIR registered against the victim by misrepresenting the facts. Subsequently, a counter case has also been lodged to mount pressure on Shri Padamdhar Dwivedi on the same incident.

Hence, enquiry has revealed that the instant FIR bearing Crime No. 0224/2021 dated 14.06.2021 U/s 147, 323, 504, 506, 452, 354 (kh) of IPC is a cross FIR of the case bearing Case Crime No. 223 of 2021 U/s 147, 323, 504, 506 and 342 IPC on 13.06.2021 and the name of Shri Ramesh Ojha and Shri Ashutosh Ojha are mentioned in this FIR to falsely implicate them.

(II) Case Crime No. 255 of 2022 under Sections 307, 504, 506, I.P.C. Case Crime No. 244 of 2021 under Sections 147, 323, 504, 506, 452, 354B I.P.C. Police Station Sarai Inayat, District Prayagraj.

Findings of State Police: Investigation of the case is continuing.

Findings of CBI: Enquiry revealed that on 09.09.2022, Shri Ramesh Kumar Ojha, Advocate met Shri Ashish Mishra, Advocate in front of Court No. 69-70 of Hon'ble Allahabad High Court, Prayagraj and asked him as to why he had got registered Case Crime No. 447/2022 dated 31.08.2022 at PS- Colonelganj, Allahabad against him through Shri Bhupendra Pandey, Advocate and got the same investigated by CBI. On this, scuffle occurred between them in front of Court No. 69- 70 of Hon'ble High Court, Allahabad. Some Advocates, present there separated them. Shri Ashish Mishra submitted a written complaint at PS- Cantt., Prayagraj on which the instant FIR was registered.

Enquiry has revealed that the incident of scuffle between advocates in Court premises had taken place on 09.09.2022 and facts of the present FIR will be subject matter of investigation being conducted by State Police.

(III) Case Crime No. 90 of 2022 under Sections 494, 504, 506 I.P.C. Police Station Industrial Area, District Prayagraj.

Findings of State Police: After investigation, State Police has forwarded chargesheet No. 123/22 dated 29.07.2022 to the Court of Special Judge SC/ST Act, Allahabad against accused Shri Kamta Prasad S/o Shri Brijlal Adiwashi, Smt. Pramila Devi W/o Shri Kamta Prasad Adiwasi, Shri Suraj

Adiwashi S/o Shri Kamta Prasad Adiwasi, Shri Man S/o Jayprakash Adiwasi U/s 323, 504, 506 IPC and Shri Vikas S/o Kamta Prasad U/s 494, 323, 504, 506 IPC and Shri Lavkush Maurya S/o Shri Rishi Ram Maurya R/o Ravanika, PS- Karchana, Prayagraj U/s 376 IPC and Section 3(2) (v) SC/ST Act.

Findings of CBI: Enquiry has revealed that Ms. Savita was married to Shri Sharda Prasad but he expired about 05 months after the marriage. After about 1 year she came in contact with one Buddhan and married him. She resided with him for about one week and thereafter left him and returned to her parents' house. After about 3 years, she married one Sh. Bhondal and with whom she lived for about 10-15 days and left him because he used to drink liquor.

Enquiry has also revealed that during September 2019 to December, 2019, Ms. Savita came in contact with one Vikas and went with him to Surat in July, 2021 and resided with him there. When the family members of Vikas came to know about the fact of him living with Ms. Savita, they objected and pressurized Vikas. Upon this, Vikas returned to Prayagraj on 12/13.07.2021 without informing Ms. Savita. After 2-3 days Ms. Savita also returned to Prayagraj from Surat and lodged a complaint with PS- Karchana, Prayagraj on 20.07.2021. On 07.09.2021, their matter was taken up before Shri Babbu Adiwasi, Village Pradhan and it was decided to get them married on 14.09.2021 at Gauri Mandir, near Kabra Ganga Ghat but the marriage could not be solemnized as Vikas did not turn up.

Enquiry has also revealed that subsequently, Lavkush Maurya, the then Gram Pradhan of Kabra and Thakur, brother of Gram Pradhan of Village Nainua Bendau visited the residence of Ms. Savita and talked about compromise in the matter. It was further decided at the Ishu Hospital owned by Shri Lavkush Maurya that both Savita and Vikas be sent to live together and railway ticket was also got booked by Shri Kamta Prasad (father of Vikas). But Savita declined to go with Vikas without marriage and did not turn up at the Railway Station.

On 18.04.2022, she came to know that Vikas was going to be married to a girl of Village- Isauta and in order to stop the marriage she alongwith her father and Bua went to PS- Meja Prayagraj and the family members of the girl were called at the Police Station and narrated her story. Thereafter, a complaint dated 19.04.2022December, 2019, Ms. Savita came in contact with one Vikas and went with him to Surat in July, 2021 and resided with him there. When the family members of Vikas came to know about the fact of him living with Ms. Savita, they objected and pressurized Vikas. Upon this, Vikas returned to Prayagraj on 12/13.07.2021 without informing Ms. Savita. After 2-3 days Ms. Savita also returned to Prayagraj from Surat and lodged a complaint with PS- Karchana, Prayagraj on 20.07.2021. On 07.09.2021, their matter was taken up before Shri Babbu Adiwasi, Village Pradhan and it was decided to get them married on 14.09.2021 at Gauri Mandir, near Kabra Ganga Ghat but the marriage could not be solemnized as Vikas did not turn up.

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Enquiry has revealed that during investigation of above mentioned FIR, statement of Ms. Savita U/s 164 Cr.PC was recorded in which she had narrated all the facts pertaining to the allegation leveled in this FIR. She also stated that Lavkush Maurya, assured her of help in the lodging of FIR in this matter and had called her at his Ishu Hospital and raped her. Shri Lavkush Maurya was arrested after her statement was recorded u/s 164 Cr.P.C.

In her statement U/s 164 Cr.PC dt. 09.06.2022, Ms. Savita, without mentioning any date, has stated that she was raped by Lavkush Maurya in his Ishu Hospital. During present enquiry, Ms. Savita stated that she was raped by Shri Lavkush Maurya at Ishu Hospital on 18.05.2022.

Enquiry has also revealed that on 25.05. 2022 Ms. Savita Devi made a written complaint to Sr. SP, Prayagraj and alleged that she had gone to Naini, Prayagraj for marketing on 20.05.2022. At about 08:00 PM, while returning from Naini she was waiting for public conveyance, when Shri Suraj brother of Vikas alongwith another person muffling his face came to her and offered to drop her in their vehicle to which she agreed. When she boarded the vehicle she was brought to an isolated place near Amilo Nahar, PS- Karchana, Prayagraj and was raped by both of them. Further, she identified that the person covering his face was Lavkush Maurya. She further mentioned in the complaint that after her rape she was left there and brought to her home by Shri Shiv Kumar, her brother-in-law and one Shri Arvind Patel of her village. In the enquiry conducted by State Police, the matter was found to be false and no FIR was lodged.

Enquiry has also revealed that on 30.05.2022 she filed a complaint U/s 156 (3) Cr PC before the Court of Ld. Special Judge, (SC/ST Act) Allahabad regarding the above incident about her rape by Lavkush Maurya and Suraj on 20.05.2022. The Ld. Court directed State Police (PS- Karchana, Prayagraj) to ascertain about the said rape incident and the State Police submitted a Report mentioning therein that the matter is false. Now, the matter is pending before the Ld. Special Judge, (SC/ST Act), Allahabad.

Enquiry has further revealed that Shiv Kumar and Shri Arvind Patel, who were witnesses cited by her in her complaint to Sr. SP. Prayagraj as well as complaint U/s 156 (3) Cr.PC, have denied any such incident and not supported the version of the Ms. Savita Devi. Shri Hari Ram, father of Ms. Savita Devi has also denied any such incident of her rape by Lavkush Maurya and Suraj. It was also revealed that after filing the complaint with the Sr.SP, Prayagraj on 25.05.2022, she has not returned to her parents' house.

Enquiry has further revealed that she has also lodged complaint dated 06.08.2022 on the IGRS (Chief Minister portal) against Lavkush and his brother Mahendra Maurya for threatening her for life. On this complaint State Police has submitted a report that the complaint is false because accused Lavkush Maurya was in judicial custody in Case Crime No. 90/2022 of PS- Industrial Area, Prayagraj.

Enquiry has further revealed that after her 164 Cr.PC Statement Section 376 IPC and Section 3 (2) (v) of SC/ST Act were added in the instant FIR, she has been given compensation amounting to Rs. 3.75 lacs by the Govt. of Uttar Pradesh.

Enquiry has revealed that when she came to know that CBI enquiry is to be conducted in the case lodged by her, she contacted Arvind Patel and Shiv Kumar who were cited as witnesses in the complaint filed by her U/s 156 (3) Cr.PC before the Ld. Special Judge (SC/ST Act), Allahabad as well as to the Sr.SP. Shri Arvind Patel and Shiv Kumar have stated that they were offered money by her for supporting her version before CBI and were also threatened to implicate them in false cases just as Lavkush Maurya was implicated.

Enquiry has revealed that initially she had lodged an FIR regarding her marriage dispute against Vikas and his family members. At the time of her statement u/s 164 Cr.PC she added new facts about her rape by Lavkush Maurya without any complaint to Police.

Enquiry has revealed that in her complaint dated 25.05.2022 to Sr.SP. Prayagraj and Complaint dated 30.05.2022 u/s 156(3) Cr.PC before Ld. Special Court (SC/ST), Allahabad, Ms. Savita has alleged her rape by Lavkush Maurya & Suraj at Amilo Nahar, PS Karchhana on 20.05.2022. However, in her statement dated 09.06.2022 recorded u/s 164 Cr.PC. Ms. Savita has stated that she was raped by Lavkush Maurya at Ishu Hospital, PS: Industrial Area, Prayagraj.

Thus, enquiry has revealed that the allegations made by the complainant on her dispute against Vikas & his family members appear to be correct but the allegations of her rape against Lavkush Maurya do not appear to be genuine at this stage and seems to have been made with a mala fide intention of getting financial benefits from the Government of Uttar Pradesh. She has already received Rs 3.75 lacs in this matter.

(IV) Case Crime No. 91 of 2020 under Sections 354Kh, 147, 148, 323, 308, 427, 452, 504, 506 I.P.C. Police Station Hanumanganj, District Kushinagar.

Findings of State Police: After investigation, State Police had charge-sheet on 28.11.2020 in the Ld. Judicial Magistr Kushinagar, Padrauna against accused S/Shri Surendra Srivasta Sartej Srivastava U/s 354-Kha, 147, 148, 323, 308, 427, 452, and 506 IPC and S/Shri Subhash Chandra Srivastava, Sant Srivastava, Ram Pyare Lal Srivastava, Rintu Srivasta Shivshankar Lal, Smt. Vimla Devi, Ms. Anchal, Narayan, Lalchar U/s 147, 148, 323, 308, 427, 452, 504, 506 IPC.

Findings of CBI: Enquiry has revealed that this matter is relate the property dispute in a family. In this matter, a dispute arose f cutting of Gulmohar tree situated in front of house of the complain

Smt. Anju Srivastava on her land by FIR named accused, nam Santosh and Surendra on 20.09.2020 on the instructions of Subhash Chandra Srivastava. When complainant objected, Subhash Chandra Srivastava and Sartej Srivastava had b beaten her. Thereafter, when her family members came to know about the incident, then Subash Chandra Srivastava was beaten by family members of Smt. Anju Srivastava Smt. Anju Srivastava, after beaten by the accused persons, went the Police Station and lodged a complaint. Thereafter, she wa accompanied by her family members to the CHC from where she wa referred to the District Hospital, Padrauna, Kushinagar for he treatment.

Enquiry has further revealed that after obtaining Medical Repc pertaining to injuries caused to Smt. Anju Srivastava, the said FI was registered against accused Subhash Chandra Srivastava ar Ram Pyare Lal Srivastava and others all R/o Village- Turkah Hanumanganj, Kushinagar.

In the meanwhile, Case Crime No. 0089/2020 dated 21.09.2020 U 147, 148, 323, 308, 504 and 506 of IPC, Police Statio Hanumanganj, Kushinagar was also lodged by Shri Subhas Chandra Srivastava against Smt. Anju Srivastava and her fami members.

Thus, enquiry has revealed that incident had taken place and th instant FIR was lodged on the basis of genuine facts and presently under trial.

(V) Criminal Complaint Case No. 429 of 2019 (old no. 180 of 2019) Police Station Kotwali Hata, District Kushi Nagar.

Findings of CBI: Enquiry has revealed that complainant was called and asked by Shri Kajulal Srivastava and his brother Sunil Srivastava to file a complaint before the Ld. Court against his uncles, namely, Shri Ram Pyare Lal Srivastava and Shri Subhash Srivastava. They told him a story and pressurized the complainant to file the complaint which was drafted by Sunil Kumar Srivastava, Advocate. He first time visited the Court alongwith Shri Kajulal Srivastava and all the expenses of the travel were incurred by Shri Kajulal Srivastava. It further revealed that the complainant was accompanied by Shri Sunil Kumar Srivastava, Advocate to the Ld. Court but he was not asked any question either by the Judge or by Shri Sunil Kumar Srivastava in the Court.

During enquiry Shri Ranjeet Kumar Gautam stated that no such incident had taken place with him and he had filed the complaint only on the instructions of Shri Kajulal Srivastava and his brother Sunil Srivastava.

Enquiry has revealed that the instant complaint was filed on the instructions/ pressure of Shri Kajulal Srivastava and Shri Sunil Kumar Srivastava as there was a property dispute with Shri Ram Pyare Lal Srivastava and Shri Subhash Srivastava (who are real uncles of Shri Kajulal Srivastava and Shri Sunil Srivastava).

Enquiry has also revealed that no such incident occurred with the complainant and he had signed the complaint under pressure/promise of Shri Kajulal Srivastava and Shri Sunil Kumar Srivastava, Advocate because they wanted to take revenge from their uncles in a property dispute. Hence, this complaint is apparently not based on true facts.

(VI) Criminal Complaint Case No. 13615 of 2020 (Old Case No. 801 of 2020) under Sections 323, 504, 506, 427 I.P.C. Police Station Hanumanganj, District Kushinagar.

Findings of CBI: Enquiry revealed that Shri Lal Chand had beaten son of Shri Chhattu and an FIR was lodged against Shri Lal Chand by Shri Chhattu.

During enquiry Shri Chhattu has stated that, to take revenge, Shri Lal Chand burned his hut himself and lodged false FIR against Shri Chhattu on the allegations of burning his hut and he was sent to the Jail and remained there for about 1 month. Shri Chhattu was not happy with the conduct of S/Shri Subhash Chandra Srivastava, Ram Pyare Lal Srivastava as they supported Shri Lal Chand in the case lodged against him.

During enquiry Shri Chhattu has stated that Shri Sunil Srivastava, Advocate taking the advantage of the situation, instigated him to file a complaint against Shri Lal Chand. Thereafter, the complaint was drafted by Shri Sunil Srivastava, Advocate who also got the thumb impression of the complainant as the complainant and her husband were illiterate. The names of Subhash Chandra Srivastava, Ram Pyare Lal Srivastava (both real uncles of Shri Sunil Srivastava with whom he was having property dispute) were mentioned in the complaint by Sunil Srivastava to falsely implicate them.

During enquiry, it has been admitted by the complainant Smt. Sarita Devi that no such incident occurred with her and her husband but the same was filed before the Ld. Court on the instructions of Shri Sunil Kumar Srivastava who also accompanied them to the Court for filing of the complaint against his uncles and Lal Chand.

Hence the instant complaint under Section 156 (3) Cr.P.C. filed in the learned Court by Smt. Sarita Devi against Sri Subhash Chandra Srivastava, Ram Pyare Lal Srivastava, Lal Chand is apparently based on false facts to implicate them in a criminal case.

(VII) Case Crime No. 195 of 2020 under Sections 376D, 406, 342, 506 I.P.C. Police Station Kareilly, District Prayagraj.

Findings of State Police: After investigation, State Police had filed charge-sheet on 14.04.2021 in the Court of Ld. Judicial Magistrate, 4th, Allahabad against accused Shri Pankaj Tripathi S/o Late Subhash Chandra Tripathi U/s 406, 323, and 506 IPC, Sh. Umesh Chandra Tripathi U/s 323 and 506 IPC and investigation was kept open by Crime Branch, Prayagraj against Dinesh Chandra Tripathi and Rakesh Chandra Tripathi to ascertain their role for commission of offences u/s 406, 342, 323, 506 and 376-D IPC.

Findings of CBI: Enquiry has revealed that on 28.12.1999 dealership of Indian Oil Corporation Petrol Pump in the name & style of "Sangam Service Station" situated at George Town, Prayagraj was allotted to Shri Subhash Chandra Tripathi, Proprietor. Due to financial crisis, in the year 2017, he handed over operation of this Petrol Pump to Shri Anoop Kumar Tiwari and Sri Prashant Kumar Mishra. An agreement to sale & operation of the said Petrol Pump was also executed on 30.08.2017

in their favour for a consideration of Rs. 05.00 crores, out of which, Rs. 1.0 crore was paid in cash at the time of Agreement. Further, amount of Rs. 45,00,000/- was paid on 31.08.2017, Rs. 13,00,000/- on 01.09.2017 and Rs. 50,00,000/- on 17.10.2017 were also paid to Shri Rakesh Chandra Tripathi S/o Late Subhash Chandra Tripathi, which was acknowledged by him through receipts on Non-Judicial Stamp Papers. It has been revealed that Shri Anoop Kumar Tiwari and Sri Prashant Kumar Mishra continued to manage the affairs of the Petrol Pump from 31.08.2017 till February 2020.

Enquiry has further revealed that the file regarding the transfer of Petrol Pump in favour of Shri Anoop Kumar Tiwari and Sri Prashant Kumar Mishra was under process at Indian Oil Corporation (IOC). Prayagraj. In the meantime, Shri Subhash Chandra Tripathi expired on 18.10.2019 and the petrol pump was temporarily transferred for operation for a period of 6 months to Shri Rakesh Chandra Tripathi eldest son of Late Subhash Chandra Tripathi.

Enquiry has also revealed that despite the payments received by Shri Rakesh Chandra Tripathi as well as his family members against sale of the Petrol Pump to Shri Anoop Tiwari and Sri Prashant Kumar Mishra, the sale agreement was not further processed by family members of Late Subhash Chandra Tripathi. Thereafter, both Shri Anoop and Shri Prashant started creating pressure for transfer of the same in their names. Due to this, Shri Rakesh Chandra Tripathi and his family members shifted themselves to Lucknow from Prayagraj. Shri Anoop and Shri Prashant, who were operating the petrol pump since August, 2017, were facing problems in financial transactions as all the Bank accounts of Sangam Service Station were being operated by Shri Rakesh Chandra Tripathi after the death of his father. Due to this, the operation of the petrol pump was stopped by them.

Enquiry has further revealed that on 22.02 2021, the dealership of Sangam Service Station Petrol Pump was transferred in the name of Smt. Shakuntala Tripathi W/o Late Subhash Chandra Tripathi (51%) and Sunil Kumar Pandey (49%). After some time, Smt. Shakuntala Tripathi transferred all her shares of the said petrol pump in favour of Shri Sunil Kumar Pandey. The consideration for transfer of 49% share & remaining 51% share of Sangam Service Station Petrol Pump to Shri Sunil Kumar Pandey could not be established during the enquiry.

Enquiry has further revealed that Shri Anoop Kumar Tiwari and Shri Prashant Mishra who had paid more than Rs 2 crores to Subhash Chandra Tripathi & Rakesh Chandra Tripathi, neither received back the sale consideration paid by them nor got the ownership of the petrol pump in their names. Being aggrieved, they lodged Case Crime No. 253/20 U/s 406 and 506 IPC against four sons of Late Subhash Chandra Tripathi on 22.03.2020 at PS- Colonelganj. Prayagraj in which chargesheet had been filed.

Enquiry has further revealed that Smt. Soni Dubey had issued a cheque of Rs 5 lacs from her A/c No. 3611976337 maintained at Kotak Mahindra Bank, Civil Lines, Prayagraj and the same was encashed by Shri Pankaj Tripathi S/o Late Subhash Chandra Tripathi on 30.01.2018.

Enquiry has revealed that on 07.02.2018 from account No. 1001210007658 of M/s Kesarwani Plywood and Hardware Place maintained at PNB, Allapur, Prayagraj, a sum of Rs. 5 lacs was

transferred into the above mentioned account No. 3611976337 of Smt. Soni Dubey. Shri Abhishek Kesarwani, Proprietor, M/s Kesarwani Plywood and Hardware Place has stated that this amount was transferred by him on the request of Shri Pankaj Tripathi who had given him cash against the same.

In view of above, it is clear that the amount of Rs. 5 lacs was received back by Smt. Soni Dubey on 07.02.2018 and, therefore, her claim that loan of Rs 5 Lacs was still outstanding on Shri Pankaj Tripathi & his brothers on the date of above alleged incident in September 2019 appears to be false.

Enquiry has further revealed that the address and contact number given by the complainant Smt. Soni Dubey in the FIR as well as during investigation by State Police, were not in use. Family members of the complainant could not provide the present whereabouts of Smt. Soni Dubey and informed that they are not in contact with her for more than 5-6 years.

During enquiry, Shri Munish Mishra, Advocate was contacted as he had earlier produced Smt. Soni Dubey before IO of Crime Branch, Prayagraj. He identified Anoop Kumar Tiwari who was running Sangam Service Station Petrol Pump at that time as the person on whose directions he had accompanied Smt. Soni Dubey to Crime Branch, Prayagraj for her examination. He also informed that FIR lodged by Smt. Soni Dubey is being pursued with him by Shri Anoop Kumar Tiwari who is aware about her whereabouts. However, he declined to record his statement in the present enquiry. Accordingly, Shri Anoop Kumar Tiwari was contacted & requested to ensure presence of Smt. Soni Dubey for enquiry before CBI. After 3-4 days Smt. Soni Dubey contacted CBI telephonically and appeared for her examination. She stated that she had given Rs 5 lacs to Shri Pankaj Tripathi on 30.01.2018 but feigned ignorance about refund of Rs 5.0 lacs in her bank account on 07.02.2018.

Enquiry has further revealed that on the allegations of rape, Smt. Soni Dubey in her complaint as well as statement u/s 164 Cr PC has mentioned the name of the accused as Rakesh Kumar & Dinesh Kumar after being taken to their house on the pretext of returning her money. However, enquiry has established that she had already received back the loaned amount on 07.02.2018, hence, question of the accused persons calling her to their house on pretext of returning the loan and raping her sometime in September 2019 appears to be concocted.

Thus, it seems that the instant Case Crime has been lodged on 26.05.2020 by Smt. Soni Dubey in collusion with the S/Shri Anoop Kumar Tiwari and Prashant Kumar Mishra to falsely implicate the sons of Late Subhash Chandra Tripathi to build pressure on them for coming to a conclusion in respect of the money advanced to them in lieu of sale of the petrol pump.

(VIII) Case Crime No. 141 of 2020 under Sections 468, 467, 420, 419, 406 I.P.C. Police Station Kydganj, District Prayagraj.

Findings of State Police: The case is presently being investigated by Crime Branch, Prayagraj.

Findings of CBI: Enquiry has revealed that Shri Abhishek Kesarwani was well known to Late Subhash Chandra Tripathi and his family members for last 15 years. They had healthy financial

transactions to meet the financial exigencies at the Petrol Pump.

Enquiry has revealed that from the A/c No. 1001050013590 of Shri Abhishek Kesarwani maintained with PNB, Allapur Branch, Prayagraj, Rs. 15 lacs were transferred vide cheque No. 767993 dated 31.10.2018, Rs. 7.65 lacs vide Cheque No. 767994 dated 02.11.2018 and Rs. 4.81 lacs vide Cheque No. 767996 dated 03.11.2018 to Indian Oil Corporation, Mumbai through RTGS on behalf of Sangam Service Station Petrol Pump. Shri Abhishek Kesarwani has stated that he had transferred another Rs. 13 lacs in the A/c of Sangam Service Station Petrol Pump through RTGS by Cheque No. 255992 dated 26.02.2020 on the request of Shri Rakesh Chandra Tripathi, Dinesh Chandra Tripathi and Pankaj Tripathi. The complainant alleged that this amount of Rs. 40.46 lacs was given by him to the accused persons for the purchase of petrol pump and on their directions it was paid directly to Indian Oil Corporation, Mumbai or to Sangam Service Station Petrol Pump.

Enquiry has revealed that Shri Anoop Kumar Tiwari and Shri Prashant Kumar Mishra were managing the affairs of the Petrol Pump from 31.08.2017 till February 2020 but its bank accounts were being operated by Shri Subhash Chand Tripathi & thereafter by Shri Rakesh Kumar Tripathi. The scrutiny of statement of Account No. 1001210007658 of Kesarwani Plywood and Hardware Place maintained at PNB, Allapur, Prayagraj revealed that on 31.10.2018, Rs. 15.00 lacs were deposited in cash in this account and on the same day Rs. 15,00,060/- were transferred to Indian Oil Corporation, Mumbai through RTGS vide cheque No. 767993. On 02.11.2018, Rs. 7.65 lacs were transferred in the above account from account of Sangam Service Station Petrol Pump and on the same day Rs. 7,65,060/- were transferred to Indian Oil Corporation, Mumbai through RTGS vide cheque No. 767994. On 03.11.2018, Rs. 4.81 lacs were transferred in the above said account from Sangam Service Station Petrol Pump and on the same day Rs. 4,81,030/- were transferred to Indian Oil Corporation, Mumbai through RTGS vide cheque No. 767996.

During enquiry Shri Abhishek Kesarwani could not explain the source of Rs. 15 lacs which were deposited in cash in the account of Kesarwani Plywood and Hardware Place on 31.10.2018. Further, he also could not explain as to why the amounts of Rs. 7.65 lacs and Rs. 4.81 lacs were received in the account of Kesarwani Plywood and Hardware Place from Sangam Service Station Petrol Pump on 2nd & 3rd of Nov 2018.

Enquiry has also revealed that on 26.02.2020, a loan of Rs. 13 lacs were advanced by Shri Abhishek Kesarwani to Shri Rakesh Chandra Tripathi from the account of Kesarwani Plywood and Hardware Place which was credited into the account of Sangam Service Station Petrol Pump and the same is presently outstanding.

Enquiry has revealed that the amount of Rs. 7.65 lacs and Rs. 4.81 lacs belonged to Sangam Service Station and not to the complainant Abhishek Kesarwani.

During enquiry, Shri Abhishek Kesarwani has stated that sometime in May 2020, S/Shri Anoop Kumar Tiwari and Shri Prashant Kumar Mishra approached him (Abhishek Kesarwani) and informed that they had paid about Rs 6.50 crores for purchasing petrol pump from Late Subhash Chandra Tripathi but after his death his sons were not transferring the petrol pump to them and

have now shifted to Lucknow thereby cheating them. Shri Anoop Kumar Tiwari and Shri Prashant Kumar Mishra informed that they have already lodged an FIR against the sons of Late Subhash Chandra Tripathi for cheating and encouraged him to lodge FIR to build pressure for return of the outstanding money. Upon this, he also informed them about lending money to Subhash Chandra Tripathi & his sons on several occasions including lending of Rs 13 lacs in Feb 2020 which has not been returned by them.

Enquiry has revealed that on the advice of S/Shri Anoop Kumar Tiwari and Shri Prashant Kumar Mishra, Shri Abhishek Kesarwani provided copy of statement of bank account of his firm to them for drafting of complaint by their Advocate. Subsequently, they had given a written complaint to Shri Abhishek Kesarwani which he signed without reading. Thereafter, all the four persons, S/Shri Anoop Kumar Tiwari, Shri Prashant Kumar Mishra, Abhshek Kesarwani and his advocate visited police station and lodged FIR bearing Case Crime No. 0141/2020 dated 27.05.2020 U/s 406, 419, 420, 467 and 468 IPC at Police Station Kydganj, Prayagraj against the accused persons.

Thus, it appears that the Case Crime No. 253 of 2020 of PS Colonelganj, Prayagraj dated 23.03.2020 by Anoop Kumar Tiwari and Prashant Kumar Mishra, Case Crime No. 195/2020 of PS-Kareli, Prayagraj dated 26.05.2020 and Case Crime No. 0141/2020 dated 27.05.2020 of Police Station: Kydganj, Prayagraj were got registered by Anoop Kumar Tiwari and Prashant Kumar Mishra to build pressure on the four brothers namely S/Shri Umesh Chandra Tripathi, Rakesh Chandra Tripathi, Dinesh Chandra Tripathi and Pankaj Tripathi to obtain/get the ownership over the Petrol Pump.

Hence, it is apparent that the instant FIR bearing Case Crime No. 0141/2020 dated 27.05.2020 U/s 406, 419, 420, 467 and 468 IPC of Police Station: Kydganj, Prayagraj was not based on true facts.

29. Thus this Court had directed the C.B.I to conduct preliminary in respect of 79 cases, regarding which the findings of the State Police as well as findings of the C.B.I. has already been discussed above.

30. Apart from the aforesaid, an intervener application no. 22 of 2023 was also filed by Sri Mujib Ahmad @ Mujib Ahmad Siddiqui as well as Sri Mushir Ahmad Siddiqui, one of whom, is a practising Advocate of this Court. They were also victimised on false accusation by one Roshan Jahan Siddiqui, a practising Advocate, by way of lodging a F.I.R. in Case Crime No. 310 of 2021 under Sections 354Ka, 354Gha, 504, 506 I.P.C. and Section 7/8 of POSCO Act, Police Station Cantt., district Prayagraj. In the aforesaid application it was prayed that the C.B.I. may be directed to conduct preliminary enquiry with respect to the aforesaid case, however during the pendency of the aforesaid intervener application, it was brought to the notice of this Court vide supplementary affidavit dated 06.10.2023 that the said Roshan Jahan Siddiqui is a gang leader and had connections in various States, such as Delhi, Madhya Pradesh, Uttar Pradesh and Maharashtra details of which had already been given in paragraph no.3 of the supplementary affidavit. Due to which, a complaint was filed by the applicant no.2 Mushir Ahmad before the Bar Council of Uttar Pradesh U.P. at Allahabad being its Disciplinary Committee Complaint Case No. 31 of 2022 (Mushir Ahmad Siddiqui Vs. Roshan Jahan Siddiqui) in which, after considering the evidence adduced by

the applicant no.2, the Disciplinary Committee found the allegations to be true. Consequently, vide order dated 05.08.2023 the Disciplinary Committee Bar Council of Uttar Pradesh U.P. at Prayagraj has cancelled her Advocate Practice Licence for a period of ten years and also debarred her from practising in the country for a period of ten years, copy of which order has already been annexed as Annexure-SA-1 to the supplementary affidavit. Thus this Court considering the facts and circumstances of the case as well as the order dated 05.08.2023 passed by the Bar Council of Uttar Pradesh, opined that the conduct, atrocities and act of informant of Case Crime No. 310 of 2021 had already been brought to fore by the Bar Council of Uttar Pradesh and had disposed of the intervener application vide order dated 31.10.2023 with an observation that no order was required to be passed for conducting preliminary enquiry by the C.B.I.

31. After perusing the preliminary enquiry reports submitted by the C.B.I. on different dates, this Court vide order dated 13.02.2023 had directed the C.B.I as well as Special Investigation Team to conduct investigation. Following were the cases to be investigated by the C.B.I :-

(A) Case Crime No. 361 of 2016 under Sections 147, 323, 504, 506, 379 I.P.C., Section 3 (2) (V) SC/ST Act, Police Station Shivkuti, District Prayagraj.

(B) Case Crime No. 617 of 2018, under Sections 376, 313, 504, 506 I.P.C. Police Station Mau Aima, District Prayagraj.

(C) Case Crime No. 90 of 2021 under Sections 342, 376-D, 506 I.P.C. Police Station Mau Aima, District Prayagraj.

(D) Case Crime No. 150 of 2021 under Sections 376-D, 506 I.P.C. and Section 3 (2) (V) SC/ST Act, Police Station Daraganj, District Prayagraj.

Following cases were directed to be investigated by Special Investigation Team of Uttar Pradesh Police.

(A) Case Crime No. 47 of 2016 under Sections 323, 427, 504 I.P.C. Police Station Kydganj, District Prayagraj.

(B) Case Crime No. 154 of 2016 under Sections 447, 452, 504, 505, 427 I.P.C. Police Station Baharia, District Prayagraj.

(C) Case Crime No. 218 of 2018 under Sections 323, 308 I.P.C. Police Station Mau Aima, District Prayagraj.

(D) Case Crime No. 82 of 2008 under Sections 147, 148, 149, 302/34, 120-B I.P.C. Police Station Baharia, District Prayagraj.

(E) Case Crime No. 379 of 2022 under Sections 147, 452, 427, 392, 504, 506 I.P.C. Police Station Civil Lines, District Prayagraj.

(F) Case Crime No. 424 of 2022 under Section 420 I.P.C. Police Station Civil Lines, District Prayagraj (G) Complaint Case No. 125 of 2022 under Sections 354, 452 I.P.C. and Section 3 (2) (V of SC/ST Act.

H) Complaint Case No. 06 of 2020 under Sections 323, 504, 506, 376D I.P.C.

32. Pursuant to the order dated 13.02.2023, the C.B.I., SCB Lucknow had registered regular case being RC0532023S0001 with respect to Case Crime No. 90 of 2021 under Sections 342, 376D, 506 I.P.C. Police Station Mauaima, District Prayagraj. RC0532023S0002 in relation to Case Crime No. 150 of 2016 under Sections 147, 323, 504, 506, 379 I.P.C. and Section 3(2)(V) SC/ST Act, Police Station Shivkuti, District Prayagraj. RC0532023S0003 with regard to Case Crime No. 150 of 2021 under Sections 376D, 506 I.P.C. and Section 3 (2)(V) SC/ST Act, Police Station Daraganj, District Prayagraj. RC0532023S0004 with respect to Case Crime No. 617 of 2018 under Sections 313, 376, 380, 506 I.P.C. Police Station Mauaima, District Prayagraj and had submitted the status report as under:-

(I) RC0532023S0001 with respect to Case Crime No. 90 of 2021 under Sections 342, 376D, 506 I.P.C. Police Station Mauaima, District Prayagraj. In this case, the State Police had filed a Charge-sheet dated 05.10.2021 against named accused Wasim Ali followed by Supplementary Charge-sheet dated 07.07.2022 against FIR named accused Shri Chandra Bhushan, Shri Rakesh Nath Pandey (Advocate) and Smt. Samla Giri in the Court of Ld. Special Chief Judicial Magistrate, Allahabad and further investigation was kept open qua remaining four FIR named accused persons namely S/Shri Rajesh Kumar, Brijesh Patel, Indra Dev and Deva. Investigation conducted by CBI has established that in Case Crime No. 90/2021 U/s 342, 376D, 506 IPC, PS Mau Aima, Prayagraj, thereis no evidence to suggest involvement of any FIR named accused in any such incident. The evidence collected during investigation has revealed that no such incident of alleged gang rape upon the complainant Smt. Archana Singh has been committed by the FIR named accused persons. Thus, a Closure Report has been filed on 21.05.2024 in the Court of Ld. Special Judicial Magistrate, CBI/Pollution cases, Lucknow.

(II) RC0532023S0002 in relation to Case Crime No. 150 of 2016 under Sections 147, 323, 504, 506, 379 I.P.C. and Section 3(2)(V) SC/ST Act, Police Station Shivkuti, District Prayagraj.

During investigation, the allegations against the accused persons made in the FIR by the complainant have not been substantiated. Investigation has established that Shri Sunil Kumar (Advocate) lodged a false case against Shri Om Prakash and his 5 other family members. On completion of investigation of this case, a Closure Report has been filed on 29.01.2024 in the Court of Ld. Special Judge, SC & ST Act, Prayagraj.

(III) RC0532023S0003 with regard to Case Crime No. 150 of 2021 under Sections 376D, 506 I.P.C. and Section 3 (2)(V) SC/ST Act, Police Station Daraganj, District Prayagraj.

It goes without saying that it is the aforesaid case in which the informant Nikki Devi, the applicant in the present application under Section 482 Cr.P.C. has sought for a direction to the concerned trial Court to consider and decide the trial of the aforesaid case expeditiously. The status report of the aforesaid case is as under:-

Initially, this case was investigated by State Police case and after investigation by the State Police and after investigation, State Police filed a charge-sheet against Bhupendra Kumar Pandey U/s 376D, 506 IPC and 3 (2) (v) of SC/ST Act on 13.11.2021 in the Court of learned Special Judge, SC & ST Act, Prayagraj. Investigation conducted by CBI has established that accused Bhupendra Kumar Pandey has been falsely implicated in this case. The evidence collected during investigation clearly revealed that there was property dispute between Shri Vinod Shanker Tripathi, Advocate and Sri Bhupendra Kumar Pandey. Shri Vinod Shanker Tripathi and Shri Sudhakar Mishra both are known to each other and they conspired to settle their score with Shri Bhupendra Kumar Pandey and used Smt. Nikki Devi for lodging this false FIR against Shri Bhupendra Kumar Pandey. In furtherance of the said conspiracy with intent to cause injury to Shri Bhupendra Kumar Pandey, Smt. Nikki Devi gave false complaint on the basis of which FIR was registered U/s 376D, 506 IPC against Shri Bhupendra Kumar Pandey and another. Accordingly, on completion of investigation, a Closure Report has been filed on 11.01.2024 in the court of Ld. Special Judicial Magistrate, CBI/Pollution cases, Lucknow along with an application for initiating proceedings under Section 120B r/w Sec. 211 IPC and substantive offences against Smt. Nikki Devi (Complainant), Shri Vinod Shankar Tripathi and Shri Sudhakar Mishra in this case.

(IV) RC0532023S0004 with respect to Case Crime No. 617 of 2018 under Sections 313, 376, 380, 506 I.P.C. Police Station Mauaima, District Prayagraj.

State Police filed a charge-sheet against Shri Akash Kumar Harijan and Shri Ashish Mishra (name emerged in the statement of victim recorded U/s 164 Cr.PC only) for commission of offence U/s 376 and 506 IPC and against Dharmendra Kumar Harijan U/s 506 IPC. The complainant Smt. Sanju Devi expired on 05.07.2022 due to some complications at the time of child birth. Investigation by CBI has established that incident of rape on complainant and the theft committed by the accused persons alleged by Late Sanju Devi (complainant) had never occurred. Name of Shri Ashish Mishra, Advocate was falsely mentioned by the complainant Smt. Sanju Devi in her statement recorded u/s 164 Cr.PC at the instance of her associates. Thus, a Closure Report has been filed on 09.01.2024 in the Ld. Court of Special Judicial Magistrate, CBI/ Pollution cases, Lucknow.

33. The Special Investigation Team of Uttar Pradesh Police was directed to conduct investigation with regard to eight cases, details of which has already been given in foregoing paragraph no.31. Pursuant to which, an affidavit of compliance dated 20.05.2024 has been filed by Sri Rajeshwar Singh, learned A.G.A. wherein it has been stated that eight cases were required to be investigated by S.I.T. team and out of eight cases, in six cases charge sheet has been filed whereas in Case Crime No. 379 of 2022 under Sections 147, 452 427, 392, 504, 506 I.P.C. Police Station Civil Lines, District

Prayagraj, final report has been submitted in absence of evidence, however in one case being Case Crime No. 06 of 2020 under Sections 323, 504, 506, 376-D I.P.C. Police Station Mau Aima, District Prayagraj, investigation is going on against the accused-applicant.

34. Perusal of the aforesaid preliminary report as well as investigation conducted by the C.B.I. and also the Special Investigation team, shows that the Advocates, who are officers of the Court, are being victimised and harassed on false accusations by an Advocate when as a matter of fact advocacy is a noble profession. It cannot be compared with any other profession because it is a part and parcel of judiciary and administration of justice. Bar and Bench are two eyes of the 'Justice'. There are judicial ethics and etiquettes for Judges. There are professional ethics and etiquettes for advocates. Every advocate should follow them in his profession. Besides the fact that Advocates are not born stalwart but by giving their most of the life in the field of law, they become stalwart, an advocate is also a key person in conducting a proceeding before the court. An advocate is considered as an officer of the court, honoured member of the community, and a gentleman, thinking to become a member of the Bar he has not only to be lawful and moral in his professional capacity but also in his non-professional capacity. An advocate has to courageously support the interest of justice and also have to follow the ethics and etiquettes.

An advocate has to do several functions which are necessary in conducting proceedings. While carrying out these functions, an advocate must act prudently, legally and cautiously. There are several ethics and etiquettes controlling the conduct of advocates. These ethics and etiquettes impose certain duties upon advocates. Ethics and etiquette means ethics are morals, a moral philosophy or moral science. It is the first stage of society. To become a lawyer is not only a profession for earning livelihood rather it is more onerous responsibility to play active role in the system to prevent miscarriage of justice.

Etiquette is the second stage, which formulates the rules of behaviour standard in polite society. Humans have experienced ethics in their life. They are inherent in every religion. Along with the civilization of humans there were Ethics. Every religion preached morals and ethics. Etiquette is restricted to particular kind of profession. It is nothing but regularization of ethics. In simple words ethics are bundle of habits whereas etiquette is bundle of rules of ethics. Advocates are the part and parcel of the administration of justice. They strive for justice. They struggle for the welfare and good of the society in general and their clients in particular. It does not mean that the advocate and the opponent advocate are rivals. There may be conflict of opinion on the issue but not between them. Their conflict ends as soon as they come out of the court premises. If they quarrel with each other like ordinary persons it affects the bar- bench relations. It may part the noble profession of advocacy into groups which may largely affect the society. But exception in every field may not be ignored. Owing to intrusion of black sheep into the noble profession of advocacy, the reputation of good lawyers in the society is at the verge of fall.

35. The applicant in the instant case has been used as tool by an Advocate. The investigation conducted by the CBI with respect to case crime No. 150 of 2021 under Section 376D, 506 IPC, Section 3(2)(5) SC/ST Act, police station Daraganj, District Prayagraj (for expedition of which case present 482 application has been moved) clearly reveals the false implication of the opposite party

No. 2, at the instance of practising advocate. It is a venom and if it is allowed to be mingled with other members of the Bar freely, the entire profession would be ruined, like a single drop of poison if put in a pot of milk turns the whole milk into poison. Lawyers are globally recognised as Officers of the Court and agents of the administration of justice and they are imposed with the social duty to promote rule of law in the society and fight for protecting the fundamental rights and freedom of the citizens as guaranteed in the Constitution.

36. In the instant matter, though the applicant has approached this Court seeking direction for the trial Court to consider and decide the trial of Sessions Trial No. 560 of 2021 (State Vs. Bhupendra Pandey) arising out of Case Crime No. 150 of 2021 under Sections 376-D, 506 I.P.C. and Section 3 (2) (V) SC/ST Act, Police Station Daraganj, District Prayagraj pending before learned Special Judge SC/ST Act, Prayagraj, District Prayagraj but when the matter came up for consideration before this Court on 21.07.2022, it has come to light that a gang of Advocates is operating, even in this Court, who used to trap innocent people in fake/false cases with the intent to extract money from them. The members of this gang trap the innocent persons under SC/ST Act cases and after receiving money from the Government (as compensation), they distribute the money amongst themselves, which has become their habit. This Court cannot sit like a mute spectator by merely considering the case of the litigant. A society that will allow its members to misuse its courts, will ultimately suffer and pay a huge cost. Litigants, both genuine and bogus, will always continue to stand in the same queue. The courts have no mechanism to pre-identify and distinguish between the genuine and the bogus litigant. That becomes known only after hearing is concluded in a case. Hearing requires time. In fact, even if the courts were to take punitive action against a bogus litigant, being bound by rules of procedure and fairness, such cases would require more time to be devoted to them than a case of genuine litigants and therefore, to bring the cat out of the bag, this Court had directed for preliminary enquiry into the matters by the C.B.I. and after considering the preliminary enquiry reports, this Court found it essential that investigation be conducted by the C.B.I. in four cases as well as in eight cases by the Special Investigation Team, as stated in the preceding paragraph and after investigation, the entire position of the cases became crystal clear and it is apparent by perusal of the preliminary enquiry reports that innocent persons have been trapped in fake and bogus cases at the behest of Advocates.

37. After investigation by the C.B.I. in the instant case, it has borne out that closure report has been filed on 11.01.2024 in the court of learned Special Judicial Magistrate, CBI/Pollution cases, Lucknow along with an application for initiating proceedings under Section 120B r/w Sec. 211 IPC and substantive offences against Smt. Nikki Devi (applicant in the present case), Shri Vinod Shankar Tripathi and Shri Sudhakar Mishra and therefore, the real fact emerged in the instant case, which was more essential.

38. Considering the fact that closure report has been filed by the C.B.I. after investigation in the matter with respect to Case Crime No. 150 of 2021 (registered as Sessions Trial No. 560 of 2021 (State Vs. Bhupendra Pandey), under Sections 376D, 506 I.P.C. and Section 3 (2)(V) SC/ST Act, Police Station Daraganj, District Prayagraj, for which the instant 482 application has been filed seeking expeditious disposal of the case, the relief sought by the applicant-Nikki Devi has become infructuous.

39. The powers vested under Section 482 Cr.P.C. are inherent and wide powers, which ought to be exercised by the High Court to prevent the abuse of process of law and to secure the ends of justice, however caution must be there while exercising such powers. In the cases, in which preliminary enquiry was directed to be conducted by the C.B.I. material fact and truth has been brought to the notice of this Court out-tracking the black sheep, on whose behest, the malicious prosecution has been launched, as has been stated in the preceding paragraphs, this Court directs the concerned trial Courts to consider and decide the pending trial in accordance with law after applying its judicial wisdom, after taking into consideration the said preliminary enquiry reports submitted by the C.B.I. as well as investigation reports of the S.I.T. as detailed in paragraph nos. 23, 24, 26, 27, 28, 31 of this order.

40. The Inspector General of Police (SIT), Lucknow is directed to furnish the investigation report conducted by Special Investigation Team, as has been directed by this Court vide order dated 13.02.2023, with respect to eight cases, to the concerned trial Court expeditiously.

41. The Registrar (Compliance) is directed to send a copy of this order to the concerned District Judge to ensure its production before the concerned trial Court as well as Inspector General of Police (SIT), Lucknow forthwith for necessary compliance.

42. The preliminary enquiry reports as well as status report submitted by C.B.I. are sealed again and are sent to the Registrar General of this Court to keep the same in his safe custody.

43. Interim order, if any stands vacated.

44. The connected cases are de-linked and be placed before appropriate Court.

45. With the aforesaid direction, the instant petition stands disposed of.

Order Date :- 26.7.2024 (Dr. Gautam Chowdhary, J.)

S.Ali